

Behind the Scenes in a Restaurant

By

The Consumers' League of New York City

1916

Behind the Scenes in a Restaurant

By
The Consumers' League of New York City

1916

The Project Gutenberg eBook of Behind the scenes in a restaurant: A study of 1017 women restaurant employees

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

Title: Behind the scenes in a restaurant: A study of 1017 women restaurant employees

Author: Consumers' League of New York City

Release date: November 30, 2022 [eBook #69451]

Most recently updated: October 19, 2024

Language: English

Original publication: United States: The Consumers League of New York, 1916

Other information and formats: www.gutenberg.org/ebooks/69451

Credits: ellinora and the Online Distributed Proofreading Team at <https://www.pgdp.net> (This file was produced from images generously made available by The Internet Archive)

*** START OF THE PROJECT GUTENBERG EBOOK BEHIND THE
SCENES IN A RESTAURANT: A STUDY OF 1017 WOMEN
RESTAURANT EMPLOYEES ***

Behind the Scenes in a Restaurant

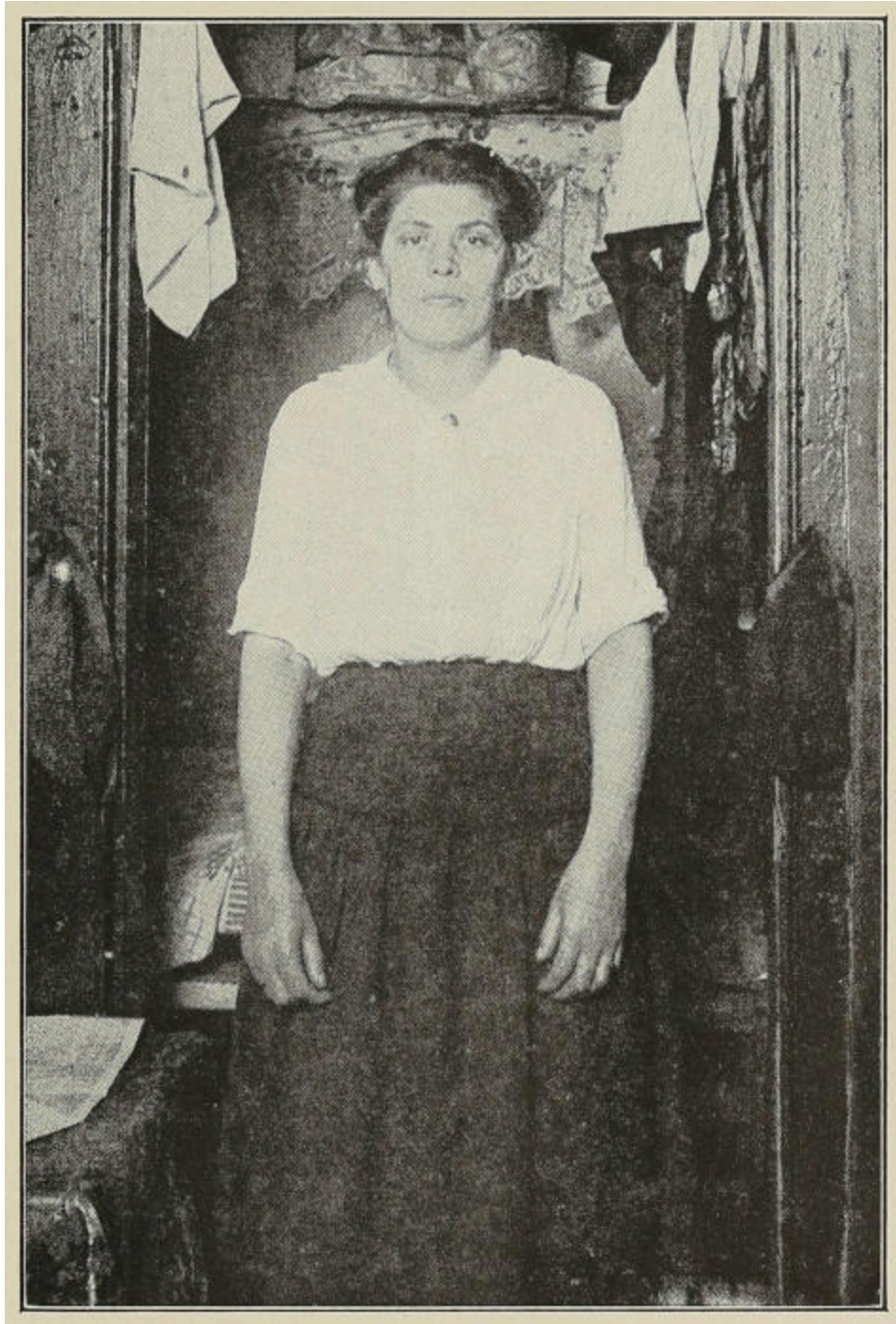
A Study of 1017 Women Restaurant
Employees

By
The Consumers' League of New York City
1916

TABLE OF CONTENTS.

	PAGE
1. FOREWORD	<u>1</u>
2. PLAN OF STUDY	<u>3</u>
3. THE WORKER	<u>6</u>
Age	<u>6</u>
Nationality	<u>8</u>
Family and Home	<u>10</u>
4. HOURS	<u>12</u>
Weekly Hours of Labor	<u>12</u>
The Day of a Restaurant Worker	<u>15</u>
Night Work and One Day's Rest in Seven	<u>17</u>
The Long-day Workers	<u>19</u>
5. WAGES	<u>20</u>
Weekly Wages	<u>20</u>
The Tipping System	<u>23</u>
Irregularity of Employment	<u>25</u>
Lack of Opportunity in Restaurant Work	<u>26</u>
6. SUMMARY OF STUDY	<u>27</u>
7. RECOMMENDATIONS FOR LEGISLATIVE AMENDMENT	<u>29</u>
8. APPENDIX I.—A Statement from the Labor Department of the State of New York Advocating the Limitation of Hours of Work for Restaurant Employees	<u>31</u>
9. APPENDIX II.—Extracts from a Tentative Report on the Physical Condition of Women Employees in Restaurants, Based on a Study Conducted by the Occupational Clinic of the Health Department of the City of New York	<u>33</u>
10. APPENDIX III.—Restaurant Work from a Worker's Point of View	<u>35</u>
11. APPENDIX IV.—Schedule Used	<u>37</u>

12. APPENDIX V.—Tables [39](#)
13. APPENDIX VI.—State Laws Regulating Work of Women
Employed in Restaurants [47](#)



WANTED—A REST

FOREWORD.

“I keep hearing about laws for women. Where are they?” This was the question asked by a woman working twelve hours a day in a restaurant. What must we tell her? What excuse have we to offer for excluding her from the protection the law gives to women working in factories and mercantile establishments? That we have safeguarded women in these fields of employment from overwork proves that we know the dangers of overwork, that long hours interpreted in terms of human life mean exhaustion, disease, immorality, pauperism and a weaker generation to follow our own. This is an old story, it has been told again and again. Yet with our over-sensitiveness to an encroachment upon the rights and liberties of American citizens, we have failed to extend the protection of our laws to all who need their protection.

The New York State Labor Law as it stands makes it illegal to employ women in factories and mercantile establishments more than fifty-four hours or six days in any one week, or between ten o’clock at night and six o’clock in the morning. So far, so good. If these laws are enforced, we may feel fairly confident that women in these branches of industry at least have some measure of protection. But what of the women not safeguarded by the law? Who are they, and why should they be neglected?

Between fifteen and twenty thousand of these women are workers in restaurants—waitresses, cooks, kitchen girls, pantry hands—upon whose services all of us depend at one time or another for our comfort and pleasure. The Consumers’ League of New York City has long felt the need of including restaurant workers under the provisions of the Labor Law. The State Department of Labor lays special stress upon this need.^[1] Believing, therefore, both from casual observation and from the statement of the Labor Department that women in restaurants are not properly guarded from industrial strain, the League planned to explore the field further, to discover just what actually are the hours, wages and general conditions of work in this branch of industry and to learn their effect upon the life and health of the worker.

A valuable study of this subject was made in 1910 by the United States Bureau of Labor Statistics for New York and several of the larger cities of the country.^[2] Though the Consumers' League has not entered upon wholly new ground, yet with adequate time for detailed study it has been possible for it to make a more exhaustive inquiry than any made heretofore, and to bring to light new phases of the question. The story of its discoveries is told in the pages that follow, to this end, that with wider knowledge of facts, public interest may be reawakened and stimulated to demand adequate legal protection for women employed in restaurants.

PLAN OF STUDY.

Believing that one of the most satisfactory sources of information in regard to labor conditions is the word of the workers themselves, the Consumers' League decided to base its study mainly upon interviews with restaurant employees. One thousand and seventeen (1,017) women were interviewed in New York City and in six of the larger cities of the State. They were seen in their homes, at their places of employment and through employment agencies.

In New York City all the interviews were held at the Occupational Clinic of the Board of Health, where, through the courtesy of Dr. Harris, Chief of the Bureau of Industrial Hygiene, a room was set aside for the use of the League investigator. In response to a requirement of the Health Department, all food-handlers in the city come to the Clinic for a physical examination and certificate testifying that they are free from communicable disease. The investigator could in this way meet the women on neutral ground when there was no temptation to conceal or distort facts, and talk confidentially with them. The interviews taken at the Clinic in five months would have required at least a year to get in any other way.

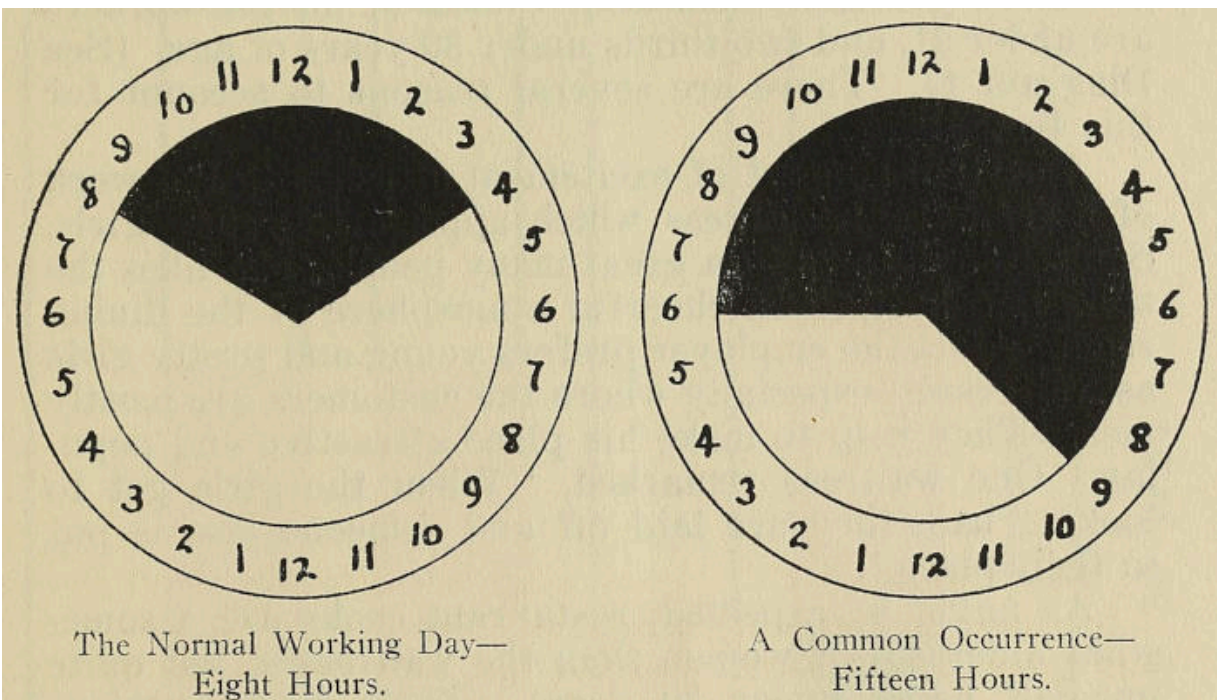
The New York State Consumers' League and the branch leagues in Buffalo, Syracuse and Mr. Vernon co-operated in interviewing women in localities outside of New York City, and the same undesirable conditions were found to prevail throughout the State.

Supplementary information was also obtained from all other available sources, such as employers, employment agencies, girls' clubs and published reports. The workers came from every kind of restaurant, including hotels, tea-rooms, buffet and dairy lunches, cafeterias and clubs. In this way it was possible to get in touch with a thoroughly representative group of workers, including the best paid as well as the most underpaid.

In undertaking the investigation, the League sought to answer three questions: first, what are the actual conditions of labor prevailing in the restaurants of New York State; second, are these conditions such that the

worker may lead a wholesome, normal life; and third, how do these conditions react through the individual worker upon society as a whole.

The Consumers' League acknowledges its deep indebtedness to Dr. Harris for the helpful interest that he has taken in its work, and for his courtesy in allowing the League investigator to take interviews at the Occupational Clinic.



The Normal Working Day—Eight Hours.

A Common Occurrence—Fifteen Hours.

There is no class of employees who serve the public so directly as do restaurant workers. Also, it is obviously of vital interest to the public that those who serve them in this way be strong and healthy since they are in a position peculiarly adapted to spread disease. The study just terminated has

brought to light certain facts which point to a grave danger to the individual worker, to those whom she serves and to the community. Hard work kept up for incredibly long hours, low pay, health impaired and resistance to disease lowered through fatigue—these are some of the facts which make action on our part necessary, that restaurant work may be a safe and wholesome occupation.

THE WORKER.

AGE.

An outstanding feature of restaurant work is the presence in this occupation of a very large proportion of girls and young women. One-fourth of all the workers are under 21, and two-thirds under 30 years of age. ([See Diagram 1](#)). There are several reasons to account for this fact.

A certain amount of excitement attaches to the work of a restaurant waitress which appeals to young girls. She sees and talks to a great many people; she likes the noise and bustle and cheerful atmosphere of the dining room. Also, the employer prefers young and pretty girls as waitresses, especially where the customers are mostly men. They help to make his place attractive and popular. One waitress remarked, "When the girls get to looking bad, they are laid off and someone else is put in their place."

As might be expected, restaurant cooks are a somewhat older set of women than the waitresses, not quite one-half being under 30 years. Their work requires experience and the ability to think and plan. Considering the nature and demands of the work, it is startling to find that twenty per cent. of their number are girls not yet 21 years old.

Over seventy-five per cent. of the kitchen girls and other helpers^[3] are under 30, and nearly half under 21. This is the youngest group. Their work needs no skill or previous training, the chief requirement being physical strength.

The youth of these restaurant workers gives rise to two distinct dangers, a physical danger and a moral one. Restaurant work necessarily involves many hours of standing and walking, lifting and carrying heavy weights. This is an unavoidable feature, but it is of the utmost importance that it be not ignored. Medical authorities have pointed out the serious results that follow the strain of continued standing and over-work of young girls. Dr. Harris states that in occupations which require such lifting and carrying and

such long hours of standing “there is a definite hazard to the child-bearing capacity of women. This is of vital consequence to society as a whole.”

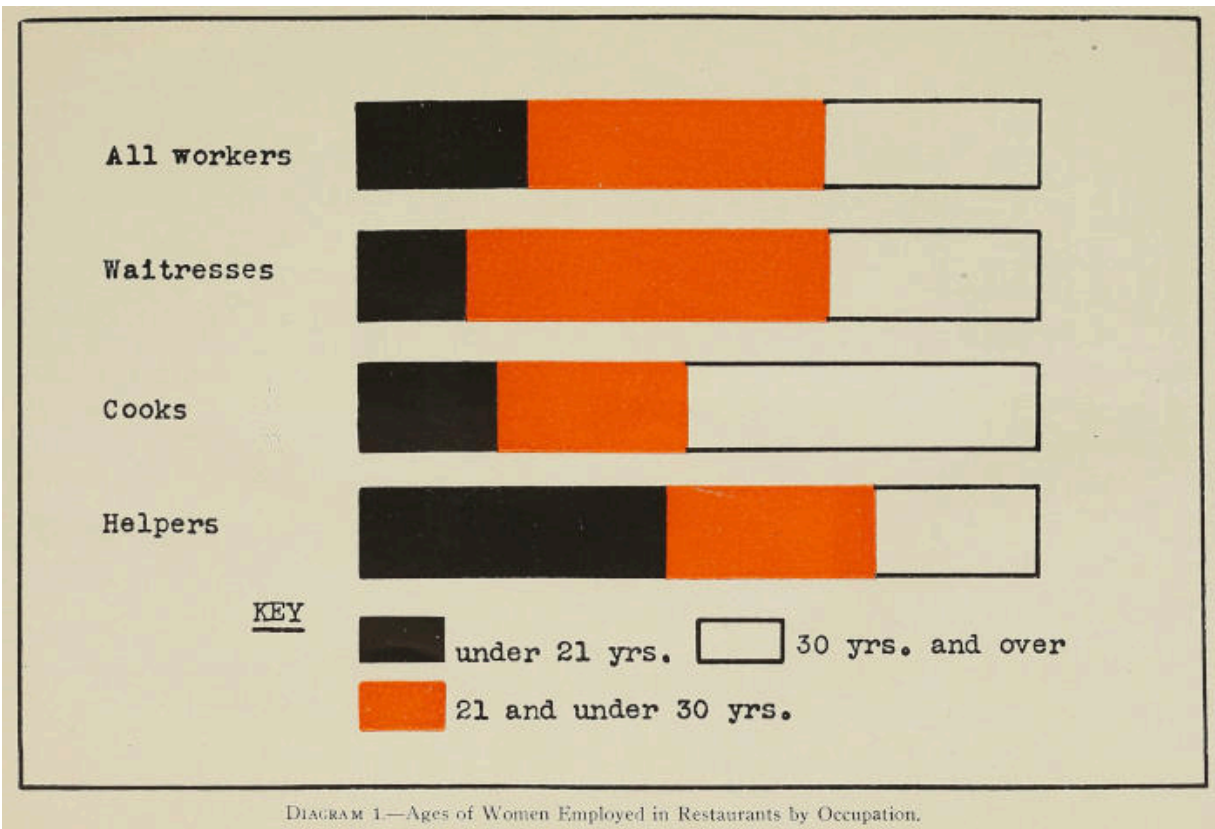


DIAGRAM 1.—Ages of Women Employed in Restaurants by Occupation.

The moral danger of the work is largely confined to waitresses. Because of their position, they are peculiarly exposed to the attentions of men customers. For this very reason, the Baltimore Vice Commission recommends that only older and more experienced women be employed in this capacity, while in Norway the law sets a minimum age limit for waitresses in public places.

If the restaurant worker is to resist the strain of the work and the temptations to which she is exposed, hours and conditions must be so adjusted as to prevent all overtaking of her strength and elasticity.

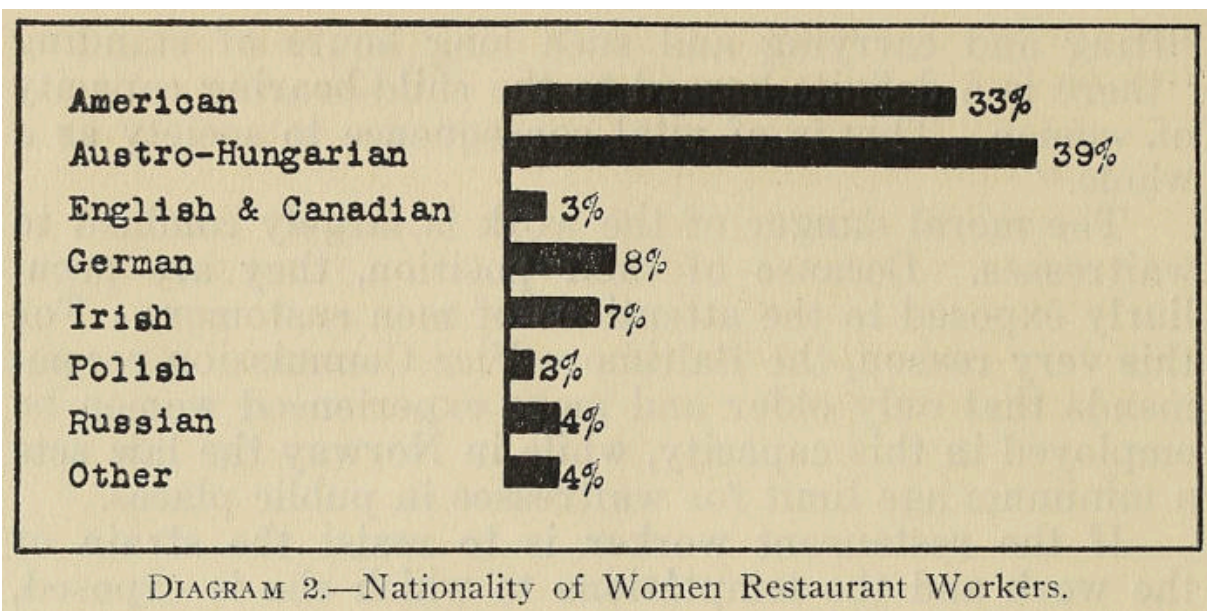


DIAGRAM 2.—Nationality of Women Restaurant Workers.

NATIONALITY.

The majority of restaurant workers are foreigners. Less than one-third are American-born, and of these a great many have foreign-born parents and live among members of their own race, so that they can hardly be classed as Americans. The largest single group is made up of Austro-Hungarians. ([See Diagram 2](#)). The demand for cheap, unskilled labor in this occupation calls for the kind of service which these girls and others of the European peasant class can give. The outdoor life in the fields of their native land fits them for the hard labor required in a restaurant kitchen. They do not remain fit long, however. After a year or two of this work, much of their sturdiness is lost, color and brightness are gone from their faces, and they have become pale and listless. A curiously dull, passive look is characteristic of many of them.

Living as they do among their own people these young peasants have no opportunity to absorb American standards and customs. Their ignorance makes it easy for employers to exploit them, demanding hours of labor and paying wages to which no American girl would submit. An employment agent said: "My 'phone rings day and night—all want peasant girls for kitchen helpers because they are the only kind that will stand such long hours." Attempts to organize restaurant workers in New York State have never succeeded. The Secretary of the Hotel and Restaurant Employees'

International Alliance, speaking of their unsuccessful efforts along this line in New York City in 1915, says, "This is not the first attempt to organize the girls. We have had a similar experience before,—in fact have had three experiences in that city and none of them a bit more encouraging than the present one." This is largely due to the presence of so great a number of young foreign girls in this occupation. They are not in a position to unite and work for their own protection. The only channel through which that protection can come is the law.

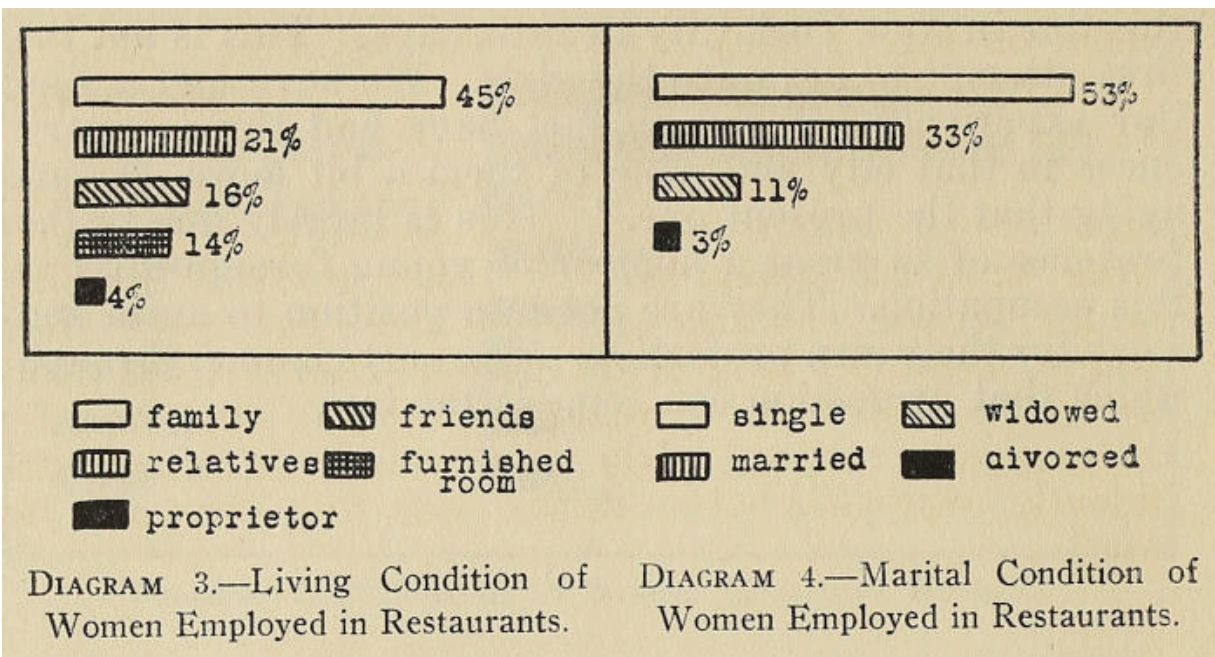


DIAGRAM 3.—Living Condition of Women Employed in Restaurants.

DIAGRAM 4.—Marital Condition of Women Employed in Restaurants.

FAMILY AND HOME.

While the greater number of restaurant workers are unmarried, it is rather surprising to find so large a proportion of married women in the work. ([See Diagram 4.](#)) This is easily explained, however, by the fact that many of them are "one-meal" girls, that is, they are employed only for the rush hour at noon. In this way they can earn a little extra money while their husbands are at work, either as "pin-money" for themselves, or to help toward the support of the children.

The majority of restaurant employees live with their family or relatives ([See Diagram 3](#)), but this does not mean that they are not entirely self-dependent. As large a proportion of a girl's wage goes into the family exchequer as she would have to pay for board and lodging elsewhere. The financial advantage of living at home appears chiefly in giving her a place of refuge when she is out of a job.

Restaurant workers are a tenement house population. A few, to be sure, can afford comfortable little apartments of their own, but as a whole their lot falls within the congested tenement districts of the city. Confusion, overcrowding, dirt, lack of sunlight, air and privacy, and unwholesome surroundings are only too common in their homes. The janitor of an East Side tenement house said: "A little while ago down in Third Street there were twenty-three girls sleeping in two rooms. They'd put their mattresses down on the floor at night and pile them on top of each other in the day time. Most of them were kitchen hands at 's," naming a well-known chain of restaurants.

The low standards of the European peasant class from which restaurant workers are largely recruited, drag down all standards. No other result is possible under present conditions. They live—but how? Low wages, miserably long hours, no opportunity to fit themselves for their new surroundings—this is what we offer these young peasant girls who come to America confidently expecting better things than they have left behind.

HOURS.

WEEKLY HOURS OF LABOR.

The salient characteristic of restaurant work is the length of the working day. Fifty-eight per cent. of the women employees work each week beyond the fifty-four-hour limit set by law for women in stores and factories. A twelve-hour day and a seven-day week is the lot of one-fifth of these workers. ([See Diagram 5.](#)) A fifteen-hour day is not uncommon. Not quite one-half of the waitresses work over 54 hours a week or 9 hours a day. The reason for this is that a large number of them, 31 per cent., are “one-meal girls.” *Seventy-eight per cent.* of all other restaurant workers, however, exceed the fifty-four hour week.

Comparing the hours of labor of these women with the hours of labor of all employees, both male and female, in the factories of New York State, four per cent. of the factory employees and thirty-five per cent. of the women restaurant employees work over sixty hours a week. Two per cent. of the factory employees and twenty per cent. of the women in restaurants work seventy-two hours or over.^[4]

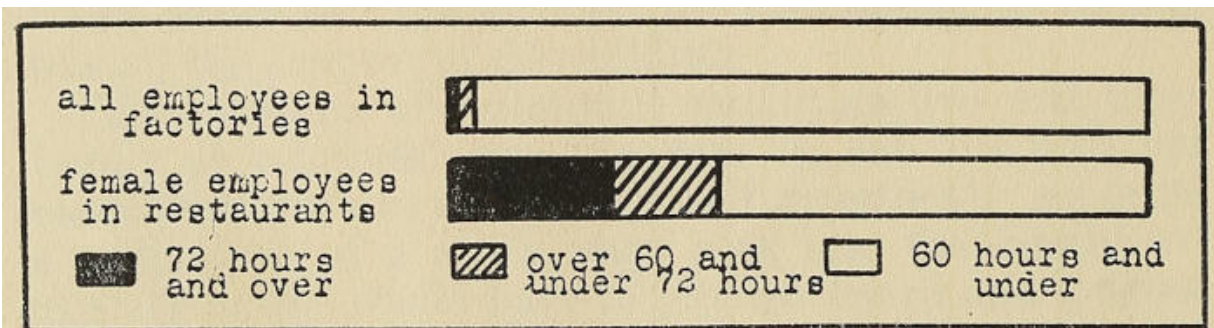


DIAGRAM 6.—Comparison of Weekly Hours of Labor for Women in Restaurants and all Factory Employees in New York State.

DIAGRAM 6.—Comparison of Weekly Hours of Labor for Women in Restaurants and all Factory Employees in New York State.

Shorter hours have been brought about in factories by the voluntary action of manufacturers, who recognize the inefficiency of over-worked

men and women; by concerted action of the workers, who have united to fight for their own protection; and by legal enactment, proving that the people of New York State are alive to the dangers of overwork. Some restaurant managers realize the waste and harm of too long hours and arrange their employees' time accordingly; most of them do not. Women restaurant workers in New York State have never been successfully organized; they cannot protect themselves. They have no legal redress for overwork; the law has neglected them. In the course of this investigation, a girl of twenty was found working one hundred and twenty-two hours a week—longer than the law allows factory employees to work in two weeks. Yet this is within the law. Although restaurants differ from stores and factories in keeping open more hours a day, and sometimes for the whole twenty-four, a system of shifts would do away with the scandalously long hours to which thousands of girls and women are bound.

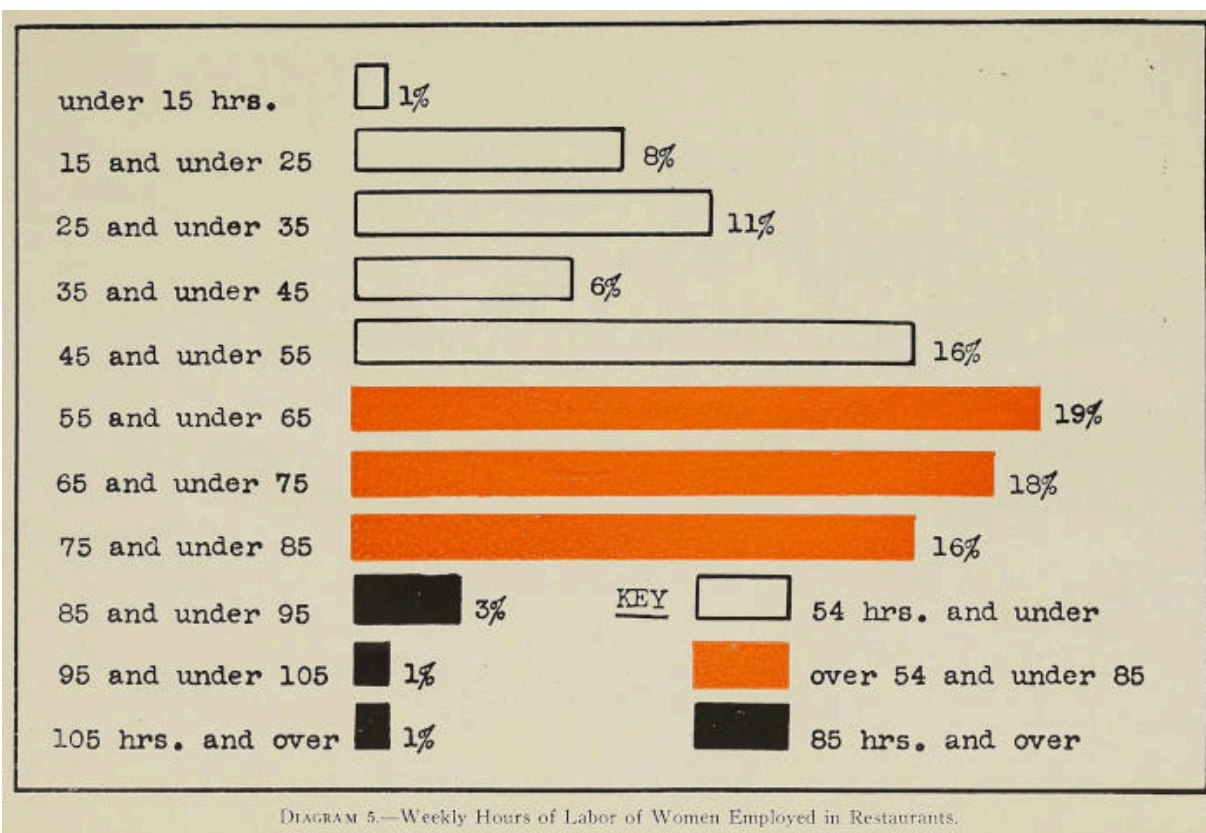


DIAGRAM 5.—Weekly Hours of Labor of Women Employed in Restaurants.

That restaurant work is at best a great drain upon the physical strength and nervous force of the worker is evident. Standing, walking, lifting and carrying heavy weights is unavoidable. The report on restaurants made by

the United States Bureau of Labor Statistics says: “There was much complaint among the waitresses that the work was very hard and they could stand it but a few years. A number of the girls interviewed had worked as three meal girls until their health was broken; then they took positions as one meal girls and barely made a living. Carrying the heavy trays and the constant standing and walking cause ill health. Usually a man is employed to carry away the empty dishes, but the waitresses must bring the trays loaded with food.”^[5]

Besides the cost to endurance, nerves are at constant tension for hurry is the remorseless rule. A waitress must not only remember a multitude of orders and fill them quickly, but she must keep her temper under the exactions of the most trying customer. The cook must keep her head amid the confusion and noise of a hot, crowded kitchen. The kitchen girl must be everywhere at once with a helping hand and the dish-washer’s very job depends upon her quickness. One of this latter group said that she washes seven thousand articles in an hour and a half. A waitress, when asked the effect of the work upon her, answered, “Sore feet and a devilish mean disposition.” A man restaurant worker speaking of kitchen girls remarked, “It’s no work for a woman. They have to lift heavy pots full of vegetables and fill in all the gaps. A man has some endurance, but a woman can’t stand it more than nine hours a day.”

Many kinds of work are difficult and taxing in their performance, but if the working day is not prolonged beyond a certain point, and there is a sufficient period of rest, such work is not necessarily injurious to the health of the worker. If this point is passed, health is impaired.

A MOVIE OF THE RESTAURANT WORKER



I
7 A.M.
The Waitress
arrives - 15
minutes for
breakfast



V
3 to 5 P.M.
"Free" and
nowhere
to go



II
7.15 to 10 A.M.
Customers
must be
served



VI
5 to 8 P.M.
Carrying
trays and
walking
many miles



III
10 to 12 A.M.
She sorts
folds and
polishes



VII
9 P.M.
Exhausted
Home and
to bed



IV
12 to 3 P.M.
With heavy
trays she
walks about
five miles



VIII
6 A.M.
The daily
grind be-
gins again

HER PROGRAM FOR

ELEVEN HOURS A DAY!
SEVEN DAYS A WEEK!

THE DAY OF A RESTAURANT WORKER.

The day of a restaurant worker does not begin with her arrival at the restaurant nor end when she leaves. Half of these women live at a distance, taking thirty minutes or more to reach their place of employment. When this

extra hour spent in going to and from work is added to a twelve hour day, it is a factor to be reckoned with. It means cutting off an already insufficient night's rest, and, when a girl cannot afford carfare, a weary walk home after being on her feet all day. Nor is this all. Only a few of the best-paid waitresses can afford to pay for the laundering of their aprons and uniforms. Consequently this must be done by the girl herself, adding another burden to a load already too heavy.

The law requires that girls in factories and stores have at least one-half hour off for luncheon. This does not apply to restaurant workers. The "one-meal" girls eat before and after serving, but the majority of the "two-meal" and full-time girls have no time at all for meals. They must eat when they can snatch a moment from their work. There were many complaints of indigestion and loss of appetite from the workers as a result of haste and irregularity in taking their meals. One girl remarked, "You're glad to grab 'em any way you can round here," and another said, "It's a wonder more girls aren't dead, the way they eat all of a rush. Often the smell of food all the time takes away my appetite so I can't eat any way."

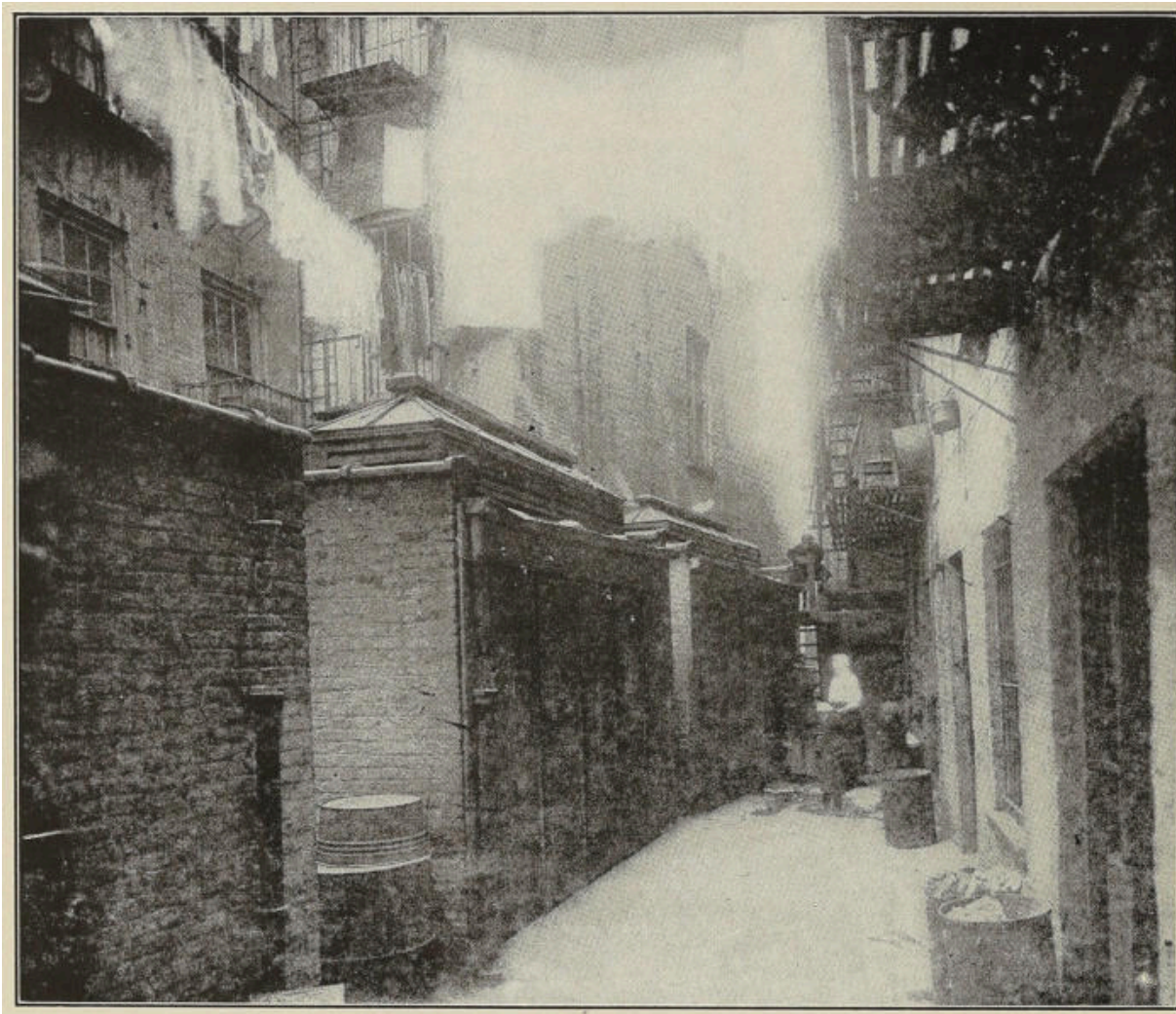
A regular time off for meals would be of great benefit to the worker not only in allowing her to eat quietly and comfortably, but in giving her a little rest. In some restaurants after the noon rush is over the girls can sit down and do "side-work," folding napkins, polishing silver, filling salt-cellars, etc. The greater number of girls, however, have no so-called "idle time." They must be on their job continuously. In other restaurants the girls work on a "split trick," that is, they have one or two hours off in the afternoon. This is a very unpopular arrangement. Not only does it keep them out late in the evening, but they cannot use their free time to good advantage. There is little opportunity for recreation or social intercourse during these hours because they come in the morning or afternoon when the girls' friends are all at work. Nor is there ordinarily time for fresh air and exercise, especially in the case of the kitchen workers. A waitress usually has only to take off her apron to be ready for the street, but the other women have not time to change to street clothes and back again in their free period. They stay in the hot kitchen because no other place is provided.

Up at six, away at 6:30, home at 8 o'clock at night worn out by the wear and tear of twelve hours' toil, a dress and an apron to be washed and ironed for tomorrow—after a day like this, what spirit or strength is left to a girl

for play and the friendly relations that safeguard her from moral danger? It is a significant fact that with few exceptions the restaurant worker is not known to settlements and girls' clubs. She does not share the group interests and social life open to other working girls. Neither does she make friends with her fellow-workers—the spring and vitality needed to win and establish friendships has been lost under the deadening effect of overwork.

According to Miss Mary Van Kleeck's estimate in her study of "Working Girls in Evening Schools," less than one per cent. of those attending were restaurant workers. They simply have not the physical strength for outside activities and interests. Time after time in answer to the question "What do you do in the evening?" came the reply, "Oh, I go right to bed." One girl, who left the work because of broken health, said, "If I went out in the evening I'd be sick the next day, and the boss would say I couldn't expect to do good work if I stayed out late at night."

The report on restaurants of the Chicago Juvenile Protective Association, emphasizes a truth too much ignored when it says: "The entire investigation revealed once more the hideous risks of the excessively fatigued and overworked girl, who is able to obtain the rest and comfort she craves only through illicit channels."^[6]



Restaurant Kitchen Opening on Row of Toilets.

Loaned by the Tenement House Department of the City of New York.

NIGHT WORK AND ONE DAY'S REST IN SEVEN.

Although the number of women employed in restaurants at night is not great, night work in this occupation is a factor to be seriously considered. The restaurants which employ women at night are the small establishments in the tenement districts of the city where hours are longest and surroundings most trying; the cheaper restaurants in the theatre districts where the employment of women is an added attraction to after-the-theatre supper parties; and restaurants in railway stations which are necessarily open all night.

The law makes it illegal to employ women in factories and mercantile establishments between 10 p. m. and 6 a. m. The reasons which caused the state to exercise its police power to safeguard the health and morals of these classes of workers apply equally to the employment of women in restaurants. The very fact that only four per cent. of the workers interviewed were employed at night proves that night work for women in restaurants is not a necessary evil. That it is an evil is beyond question.

The dangers of night work are two-fold. First, it is a distinct menace to the health of the worker. The Factory Investigating Commission in its Report to the Legislature for 1913, states: "The chief danger to health from night work is ... due to the inevitable lack of sleep and sunlight. Recuperation from fatigue takes place fully only in sleep, and best in sleep at night. Hence night work is, in a word, against nature. This injury to health is all the greater because sleep lost at night by working women is never fully made up by day. For, in the first place, sleep in the day time is not equal in recuperative power to sleep at night.... Moreover, quiet and privacy for sleep by day is almost impossible to secure. Upon returning home in the middle of the night or at dawn the workers can snatch at most only a few hours' rest."

Often a woman will have one week of night work alternating with a week of work in the day time. She hardly gets accustomed to sleeping by day when she is taken off the night shift, to change back again at the end of the week. Thus it is impossible for her to form regular habits in sleeping and eating.

Secondly, there is a grave moral danger involved in night work, especially for restaurant workers since at this time they are open to the attentions of an undesirable class of men. "I don't like to work at night," one young waitress said. "The men are always fresher to girls at night than in the day time. Perhaps it's because so many of those gamblers come in drunk." Nor is it safe for a woman to go home alone after twelve o'clock at night. Instances of hideous occurrences are familiar to everyone. A little widow, the mother of seven children, told the investigator that she had given up her work as a dishwasher for this very reason. A friend of hers working in a nearby restaurant, was set upon, robbed and killed on her way home from work late one night. "I changed my work then," said the woman, "for what would the children do if anything happened to me?"

The majority of restaurants employ men for night duty. It is evident, therefore, that the employment of women is not essential to the convenience and comfort of either restaurant owners or customers.

In nearly every branch of industry the working week is six days long. It is universally conceded that there must be one day in the seven for rest and relaxation if men and women are to give their best service. With restaurant workers, thirty-three per cent. of whom have no day of rest in seven, the need for such a time is particularly great because of the long working day. Otherwise they have no opportunity for a thorough rest and the poisons of fatigue are not thrown off. If these poisons are not eliminated, they accumulate in the system and finally result in physical breakdown.

And not only is this free day important on the score of health, but it is also the time for recreation and the strengthening of family ties. For the girl who has no leisure, no time for real relaxation and play, there is only a starved and empty existence. A woman who has no opportunity to be with and to know her children, who must leave them to the care of friends or a day nursery or the street, who has no day in the week to be at home with them, can hardly be a potent factor in shaping their lives. She suffers and so do the children, and the stability of such a family life is at best uncertain. One woman said, "If I get a half day off on Sunday to be with my children, it makes me happy all the week."

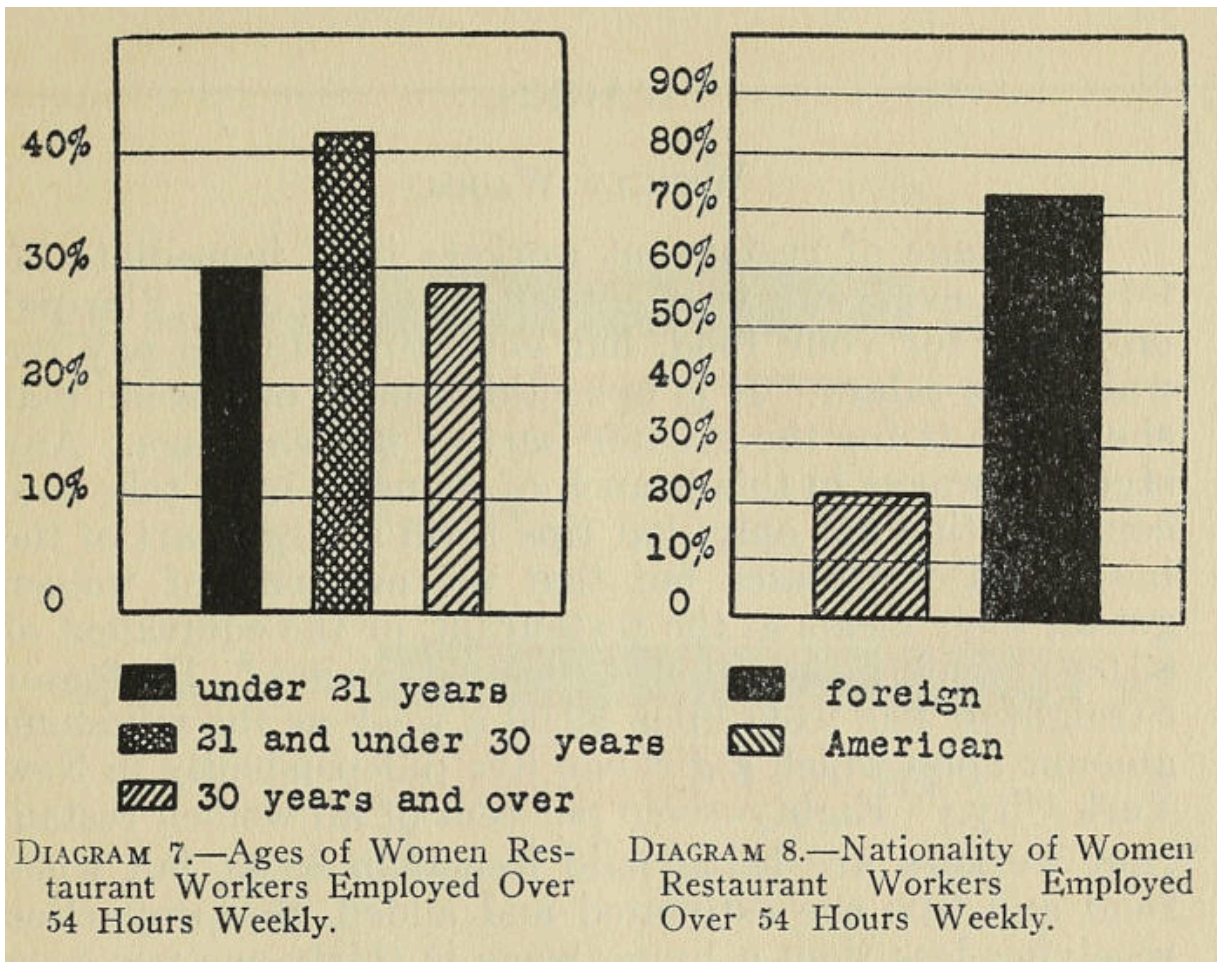


DIAGRAM 7.—Ages of Women Restaurant Workers Employed Over 54 Hours Weekly.

DIAGRAM 8.—Nationality of Women Restaurant Workers Employed Over 54 Hours Weekly.

THE LONG-DAY WORKERS.

Who are the workers that bear the brunt of the long hours in restaurants? They are for the most part the younger women and girls—those who are most likely to be injured by overstrain. They are the very ones whom it is to society's interest to protect most carefully since by their strength is measured the strength of the next generation. Less than thirty per cent. of all workers exceeding fifty-four hours a week are over thirty years of age. ([See Diagram 7.](#))

Foreign-born women also make up the greater part of this group. ([See Diagram 8.](#)) They do not know how to protect themselves from employers' unreasonable demands, they must have work and they are not trained for

anything except unskilled labor. They will work any number of hours exacted by the employer whatever the cost, until exhaustion renders them unfit for labor of any kind.

WAGES.

WEEKLY WAGES.

The wage of restaurant workers is of immediate interest to everyone who enters a restaurant. You not only pay for your food, but your tip helps to pay the waitress's salary. It is upon this source of income that she depends for the greater part of her earnings. Any study of wages in this branch of industry must take into consideration not only that tips form a large part of the income of waitresses but that the majority of women get all their meals at the restaurant, or the equivalent of \$3.00 a week in addition to actual wages.^[7] Professor Streightoff has fixed upon \$9.00 a week as the minimum amount upon which a girl can live independently in New York City.^[8] Eighty-seven per cent of all women restaurant workers are being paid less than \$9.00, but when food and tips are estimated and added, the proportion receiving less than a living wage is thirty-one per cent. While it is true therefore that the majority of workers in restaurants are earning enough to support themselves, it is a matter for grave concern that so large a number of women are being forced below the lowest point at which they can maintain health and decency.

Moreover this \$9.00 a week minimum does not allow for saving against illness, dentist's bills, unemployment or any other emergency. Taking \$10.00 a week as the least upon which a girl can live and save, we find that forty-nine per cent. of these women are receiving in actual wages or their equivalent less than this amount. A few restaurant workers live at their place of employment, thus receiving lodging as well as board, but as this is true of only four per cent., the proportion is too small to affect appreciably the wage scale as a whole.

It is upon the kitchen and pantry hands who make up twenty-eight per cent. of all the workers that the burden of low wages falls most heavily. Waitresses have the opportunity to make tips, cooks receive comparatively fair wages because their work requires a certain amount of skill, but the other women cannot make tips and their unskilled labor is very poorly paid.

One-third are receiving less than \$6.00 a week, and three-fourths less than \$7.00. ([See Diagram 9.](#))

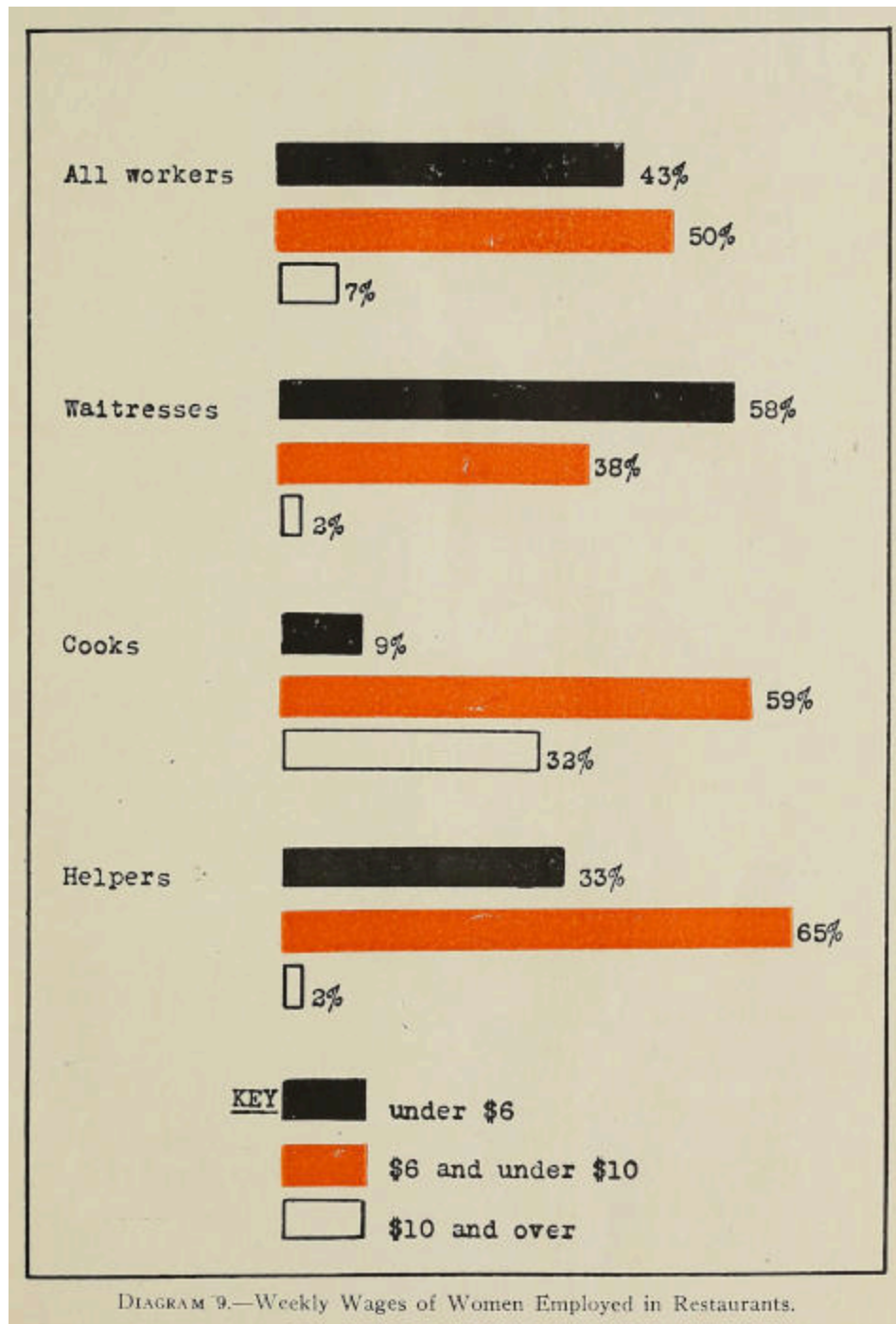


DIAGRAM 9.—Weekly Wages of Women Employed in Restaurants.

The income of a restaurant worker is not clear gain. Certain expenses are involved in the work which she must meet herself. In restaurants where a

special dress is required the waitress must provide her own uniforms, and she must also either wash them herself, or pay for having them laundered. Two clean uniforms a week is the usual requirement and in some cases three. The report of the United States Labor Department estimates that it costs a girl about \$0.63 a week for the laundering of her aprons alone.^[9] It costs \$0.25 to have a uniform laundered, which means \$1.13 must be deducted from the \$3.50 a week usually paid to waitresses in tea-rooms, where special dresses are always required. In one New York tea-room the girls must have two sets of uniforms, a white dress with white shoes, and a blue dress with black shoes. Each uniform costs \$2.50.

Fines also eat into the restaurant worker's earnings. Girls are commonly fined for lateness, one particular restaurant exacting \$0.25 if a girl is ten minutes late. Her pay is always cut for breakage, and in some places a certain amount is deducted weekly whether she breaks any dishes or not. Also, mistakes in adding up checks, either over or under the correct amount, and mistakes in orders, must be paid for by the waitress. "Those are the things that make the girls mad," said one. In one New York tea-room this summer, a customer was served with hot coffee, when she had asked for iced tea, the waitress misunderstanding the order. The mistake was corrected and the iced tea substituted. When the waitress brought the customer her check, however, both tea and coffee were charged, and the girl laid down twenty cents upon the table. "You know, we have to pay for our mistakes," she said.

What low wages mean in actual living cannot be expressed by figures. Poor quarters in questionable parts of the city, clothing of the most utilitarian kind, no money for the pretty things that every well-constituted girl wants, nothing for recreation, and worst of all, debts after illness or unemployment which take the very heart out of a girl in the bitter struggle to pay them off. The proprietor of a Buffalo employment agency remarked, "Look at the Wants Ads; with the many factories in Buffalo you will find the list "Help Wanted for Restaurants" equals that of "Help Wanted for Factory Work," and what does that mean?—Simply that the restaurant workers are a discontented lot and all because of the excessively long hours and low wages."

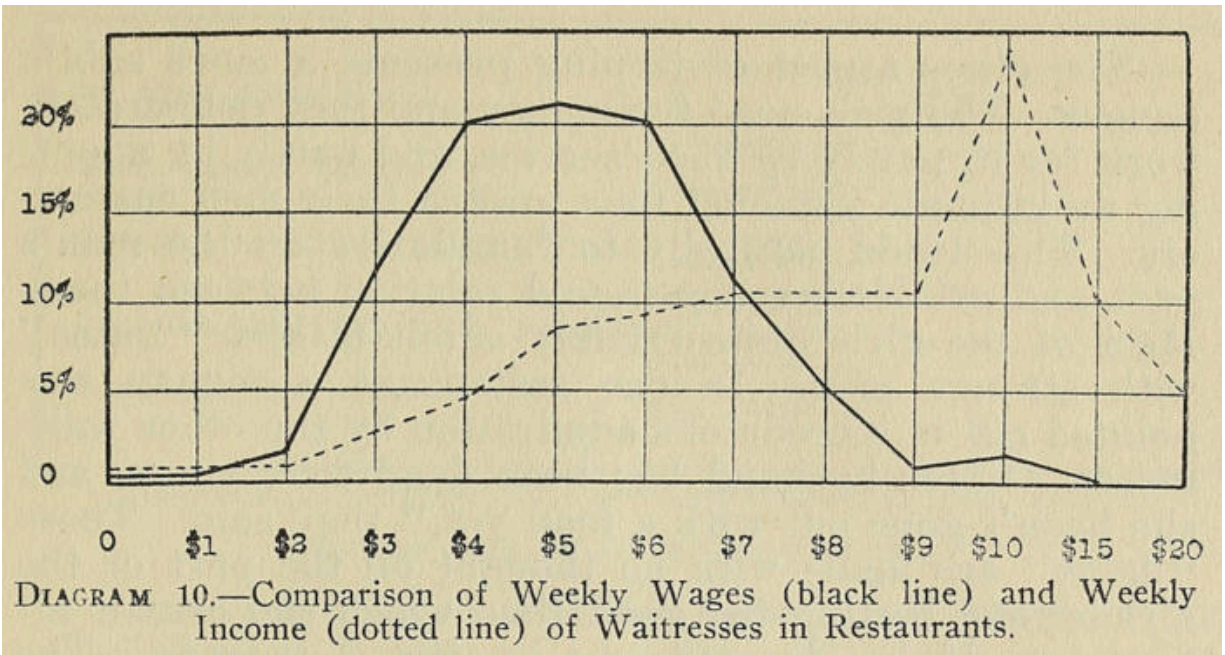


DIAGRAM 10.—Comparison of Weekly Wages (black line) and Weekly Income (dotted line) of Waitresses in Restaurants.

THE TIPPING SYSTEM.

Tipping is a direct drag upon wages. When the public is perfectly willing to contribute part of a waitress's wage, why should not the employer take advantage of this fact and pay her less? That is surely to be expected and is almost universally the case. Many girls, accustomed to making a good deal in tips or "scale," as they call it, would not be willing to work for \$9.00 a week and no tips, for they can often make more than this amount. But the better class of girl would prefer a living wage and no tips. As matters stand now, however, they are a very necessary part of a girl's income.

Comparing the weekly wage and the weekly income of waitresses as shown in [Diagram 10](#), we find that without tips only 8 per cent. make as much as \$9.00 a week, while with tips 50 per cent. receive \$9.00 or more. The custom of tipping has two distinct disadvantages. First, it is an unreliable source of income. A girl may reasonably expect to make a certain amount in tips, but she cannot count upon doing so. The danger here is not only that she will receive less than it is possible for her to live on, but that she will get into debt, trusting to luck that her tips will be large enough to get her out. It is very easy to be over-confident. A tea-room waitress said:

“Sometimes I make \$12.00 a week in tips, sometimes almost nothing. You can’t depend on people.” Tea-rooms are the greatest sinners in respect to making their waitresses depend upon tips. The usual wage in several of the well-known New York tea-rooms is \$3.50 a week for full time, which is ten or twelve hours a day.

The other aspect of tipping presents a more subtle danger. The girls need the money and they deliberately work for it, partly by good service, and partly by adopting an intimate personal tone toward their men customers. This leads naturally to familiarity on the man’s part and establishes a personal relation between them. Most of the girls quite frankly admit making “dates” with strange men. In one restaurant a woman was pointed out in incredulous admiration by the other waitresses. “Her husband has been dead four years, and she hasn’t gone out with a man yet,” they said. These “dates” are made with no thought on the part of the girl beyond getting the good time which she cannot afford herself, but the outcome is often a tragedy. The restaurants in one city of the state forbid unnecessary conversation between waitress and customer because conditions resulting from the practice became so flagrant. The result of this custom is that girls are approached to whom any attention from their men customers is most distasteful. The report of the United States Bureau of Labor Statistics says: “Many of the waitresses complain of the annoying attention of male customers. Many girls said, however, that if they speak sharply to a customer or offend him, they are likely to be reprimanded by the head waitress and may even lose their position.”^[10]

The Juvenile Protective Association of Chicago considers tipping a vicious system. “The giving of tips should be abolished because of their pernicious effect. A young girl who under any other circumstances would not dream of accepting money from a man will accept it in the guise of a tip. In the hands of a vicious man this tip establishes between him and the girl a relation of subserviency and patronage which may easily be made the beginning of improper attentions. The most conscientious girl, dependent upon tips to eke out her slender wage, finds it difficult to determine just where the line of propriety is crossed. Thus, in addition to the other dangers surrounding the girls employed in hotels and restaurants, they encounter the lack of respect which curiously attaches itself to one who accepts a gratuity.”^[11]

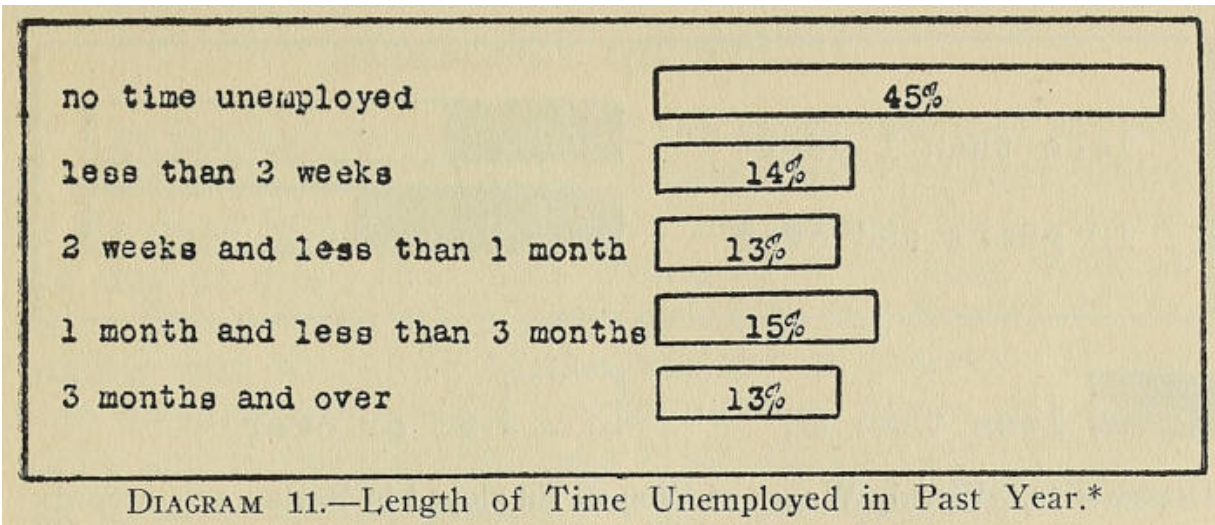


DIAGRAM 11.—Length of Time Unemployed in Past Year. [\[12\]](#)

IRREGULARITY OF EMPLOYMENT.

Closely connected with the question of wages is the possibility of being out of a job. If a girl is earning \$10.00 a week she may be able, with the most careful saving, to lay aside enough to tide her over two or three weeks of unemployment. But the savings from a \$10.00 weekly wage do not last long. Twenty-eight per cent. of these women were out of work one month or longer in the past year because of the slack season, illness, change of their place of employment or for some other reason. The girl who cannot save is in a desperate condition indeed. For her, prolonged unemployment means debt, heart breaking anxiety and dependence.

Girls in restaurant work do not get vacations with pay except in very rare instances. One well-known New York firm having tea-rooms in various parts of the city, is to be congratulated on the fact that it does give its waitresses a vacation with pay. A few of the married women, or those who have families to care for them, can afford to take time out of the year's work for a rest. But when a girl is not working, it is for the most part a matter of stern necessity and inevitably means a time of struggle and suffering.

Restaurants do not labor under the difficulties of seasonal employment. We should expect to find a steadiness in this occupation which the facts do not bear out. It is therefore evident that the instability of the work and

constant shifting is due to the unsatisfactory nature of the employment itself. The large proportion of workers out of employment for one month or more a year (20%) is striking evidence of this fact.

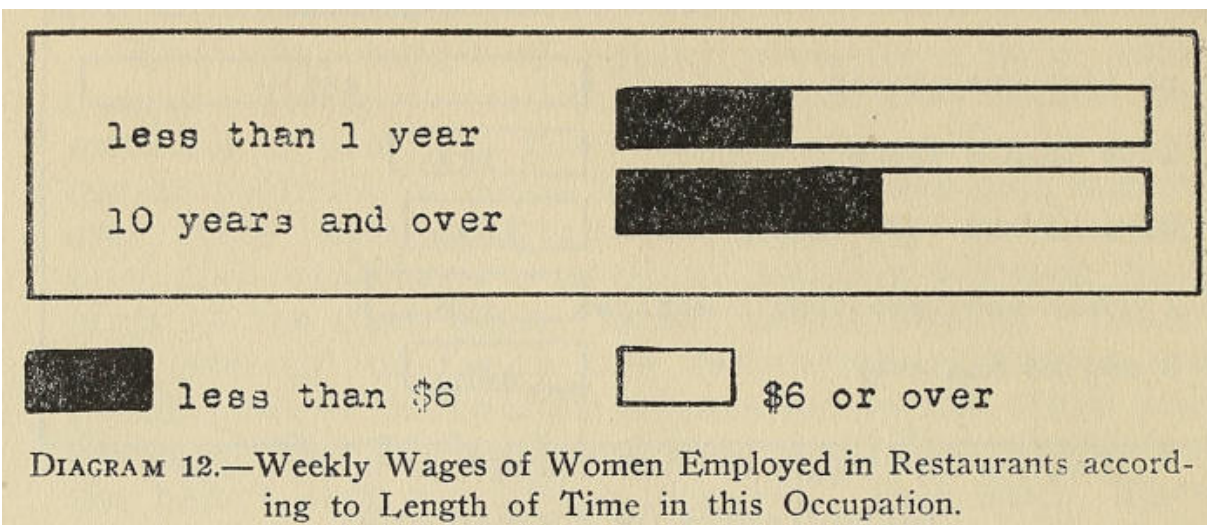


DIAGRAM 12.—Weekly Wages of Women Employed in Restaurants according to Length of Time in this Occupation.

LACK OF OPPORTUNITY IN RESTAURANT WORK.

Restaurant work is a “blind alley” trade. There is little opportunity for development or advancement. What training is necessary can be acquired in a few weeks, and the only position to which a girl can look forward is that of head waitress. There are no recognized degrees of skill in any part of the work connected with a restaurant. On the contrary, the tendency is in the direction of wearing girls out by overstrain rather than of giving them a chance. The girls who have been in the work the shortest time get higher pay than those who have been in it longest. Sixty-five per cent. of those who had been working less than a year were getting \$6.00 or more a week, while only fifty-five per cent. of those who had been working over ten years were receiving as much. ([See Diagram 12.](#)) The woman who remains in restaurant work for more than a few years gradually loses her strength and ability, and can get a position only with an inferior type of restaurant, where the necessity for having a job forces her to accept whatever wage is offered her.

SUMMARY OF STUDY.

The law has declared illegal the employment of women in mercantile establishments longer than fifty-four hours or six days in any one week, on the ground that a working day of more than nine hours, or a working week of more than six days, is prejudicial to the health of the worker and therefore to the welfare of society. It has also declared illegal the employment of these women at night and it safeguards their interests further by insisting upon a definite period for the mid-day meal. Fifty-eight per cent. (58%) of the women employed in restaurants exceed the fifty-four hour limit, twenty per cent. (20%) work twelve hours a day and four per cent. (4%) are employed at night. One-third do not have one day of rest in seven, and the majority are not allowed time off for their meals. Do not these women also need the protection of the law?

Restaurant work has much in common with work in mercantile establishments. Continuous standing and walking and the nervous strain entailed in serving many customers are features of both occupations. Besides this, restaurant work necessitates the lifting and carrying of heavy weights which may easily be disastrous not only to the worker herself, but to her children. Dr. Harris has expressly stated his belief that such work will injure the reproductive organs of a women unless she is guarded from overstrain. The larger proportion of restaurant workers are girls and young women, who are peculiarly susceptible to overstrain because of their youth.

There is abundant evidence from the testimony of the girls themselves that restaurant work is a severe tax and that the need for limiting hours of labor is strongly felt among them. Here are quoted a few of the remarks made by them, which could be duplicated many times:

“I think it’s a shame to let a woman work twelve hours a day. I’m so tired at night I can’t do anything but go to bed.”

“I can’t keep a job longer than four months because I get so nervous.”

“This is my second week and I’m nearly dead, the hours are so long.”

“It would be the grandest thing in the world if they could do away with the twelve-hour day.”

To resist the unavoidable strain of the work, the restaurant worker must be in a normal, healthy state of mind and body. Our responsibility lies in seeing to it that conditions are such as to make this possible.

The results of fatigue do not end with the individual. It is common knowledge that health depends upon the power to resist disease. The person who has overworked is not only subject to the devastating action of fatigue poisons, but is a prey to any infections to which he may be exposed because he cannot throw them off. Working conditions which render large numbers of men and women susceptible to disease, and hence capable of spreading it, are a public menace. To allow such conditions to continue unchecked is inexcusable negligence.

These facts point directly to the crying need for the limitation of hours for women in restaurants, that the individual worker may be protected from overstrain, that the community may be guarded from the spread of contagious disease by people predisposed to infection through fatigue, and that the children of these women may be strong and capable of becoming useful citizens.

It must be conceded that the difficulty of regulating hours in restaurants is much greater than in mercantile establishments. Restaurants must be open for a longer period each day than any store needs to be or is likely to be. But the difficulties are not insuperable. By working the employees in shifts of nine consecutive hours a day and six days a week, and by replacing women by men for night duty, the most undesirable features of restaurant work would be abolished. Such a plan has already been tried successfully in a number of New York restaurants, proving that it is possible and feasible to regulate hours.

To limit by law the hours of labor for women employed in restaurants cannot be considered a new or revolutionary step. New York is already far behind the majority of other states in this respect. At the present time, twenty-seven states regulate the number of hours that women may work in restaurants, five having the eight-hour day.^[13] Clearly, therefore, the establishment of a normal working day for this class of workers is not only

reasonable, but, in the opinion of the greater number of states, it is essential to the best welfare of their people as a whole.

RECOMMENDATIONS FOR LEGISLATIVE AMENDMENT.

In view of the evidence brought to bear upon the subject, The Consumers' League wishes to urge the inclusion of women restaurant workers under the Mercantile Law, the general provisions of which are:

- (1) That the working day shall not exceed nine (9) and the working week fifty-four (54) hours.
- (2) That women shall not be employed between the hours of 10 p. m. and 7 a. m.
- (3) That there shall be one day of rest in seven, and
- (4) That there shall be a regular time off each day for meals.

APPENDIX I.
A STATEMENT FROM THE LABOR DEPARTMENT OF
THE STATE OF NEW YORK ADVOCATING THE
LIMITATION OF HOURS OF WORK FOR RESTAURANT
EMPLOYEES.[\[14\]](#)

At present restaurant employees do not come within the provisions of the law relative to hours of labor of females, or the day of rest law. To the casual observer it is very evident that there is no other employment in which males and females are employed, where the hours of labor are so long, and where the employees are compelled to be constantly on their feet. It is admitted that there is no class of work in which so large a percentage of females is employed. The Legislature has recognized that the females working in restaurants should be protected to some extent, by providing in section 17 of the Labor Law that "Every person employing females—as waitresses in a hotel or restaurant shall provide and maintain suitable seats" but by the very nature of their work the employees have no opportunity to use these seats. There seems to be no good reason why the hours of employment of females in restaurants should not be subject to law as in mercantile establishments, and that all those employed in the same should enjoy the benefits of the day of rest law, as they do in other employments. The evil resulting from restaurants being exempt from the provisions of the Labor Law relating to hours and day of rest, is shown in the fact that bakeries and confectionery establishments have added to their business the serving of sandwiches and lunches, and endeavor to escape the provisions of the law by claiming that they are exempt because they are operating a restaurant. This illustrates the subterfuge to which many employers will resort rather than comply with the law.

JAMES L. GERNON,
Chief Mercantile Inspector.

APPENDIX II.
EXTRACTS FROM A TENTATIVE REPORT ON THE
PHYSICAL CONDITION OF WOMEN EMPLOYEES IN
RESTAURANTS, BASED ON A STUDY CONDUCTED BY
THE OCCUPATIONAL CLINIC OF THE HEALTH
DEPARTMENT OF THE CITY OF NEW YORK.

From such opportunities for observation as our clinic study afforded us, it is safe to say that this occupation is one which may affect the health of women and in connection with long hours and small wages may combine to cause an increased existence of sickness among them. The effect of work that requires standing and running about while carrying loads for many hours during the day will be particularly marked upon the generative organs of the woman. The influence of the work in this particular, which we are unfortunately unable to study, because of the opposition it would inevitably arouse, leads me to believe that from this standpoint alone, there is a definite hazard to the child-bearing capacity of the woman. This is of vital consequence to society as a whole, as well as to the individual workers, and therefore well justifies every effort to correct the undesirable conditions that attend this occupation.

LOUIS I. HARRIS,
Chief, Division of Industrial Hygiene.

APPENDIX III.

RESTAURANT WORK FROM A WORKER'S POINT OF VIEW.

“A nine hour law would be a very good thing. I think long hours are very bad for women in restaurants. Most of them have varicose veins and flat feet, and a large number suffer from stomach trouble. Look at me, I am strong and healthy, but when I’m through at night, I am just all in. It’s a dreadful nervous strain.

“Girls have to live on tips. If you tell the boss you can’t make any, he says you are no good and discharges you. You have to put up with it or starve. The majority of girls—the better class of waitresses—if they could get a good living would be glad to do without tips. Of course it would be a revolution and would require a lot of agitation.

“Girls in restaurant work have greater temptations than most girls. Advances are always made, especially in certain districts. A great number go wrong because of so many advances.

“Nothing has ever been done for restaurant workers. The bosses all seem to think we are a lot of crooks. Waitresses think the same of them. Girls don’t change their jobs so often because they like to. They get fired, mostly because the manager just wants to, or the work is too hard and the place miserable.

“There should be a nine-hour day, and two meals with half an hour allowed for each. Hours should be arranged consecutively. The best regulation would be to have girls work in shifts, going on at eight and coming off at five, or going on at eleven and working until eight. The same arrangement could be made for the kitchen help.”

APPENDIX IV.

SCHEDULE USED. [\[15\]](#)

SCHEDULE USED.

NAME * Katie Penzel	ADDRESS 518 West 3rd St.	OCCUPATION Waitress
-------------------------------	------------------------------------	-------------------------------

* Watkins Name of restaurant	349 13th Ave. Address	Counter: Kind of	YRS AT WORK 5 this trade
AGE 26	CONJ. COND. V s. m. w. d.	Austria Birthplace	18 mos. present firm
LIVING COND. V with family, boarding with relatives; friends, furnished room		Austrian Nationality of father	6 1/2 total
REGULARITY OF WORK Time idle in last 12 mo. due to slack season		30 min. time	7 Yrs in U. S. in N. Y.

H'RS	FIRST WEEK	SECOND WEEK	OVERTIME WEEK	V'ction with pay
	Begin. End. Total	Begin. End. Total	Begin. End. Total	without
MON.	8 8 12	8 8 12		NO. MEALS A DAY AT REST. 3
TUES.	8 8 12	8 8 12		Ill
WED.	8 8 12	8 8 12		Other
THURS.	8 8 12	8 8 12		Total
FRI.	8 8 12	8 8 12		No
SAT.	8 8 12	8 8 12		Time off for meals
SUN.	8 8 12	8 8 12		None
TOTAL	84	84		

NO. TABLES RESP. FOR 14	KIND OF SHOES WORN High heeled	EFFECT ON HEALTH "Sore feet and a mean disposition."
Seat. cap. 100	No. waited on a day 70 ft.	DATE 2/23/'16 CITY N. Y. C. INVESTIGATOR M. E. N.
	KIND OF FLOOR Wood	SOURCE OF INFORMATION Restaurant

WAGES PER W'K \$6.	TIPS A W'K \$2.	OVERTIME PAY
FINES No	Total w'kly	
OTHER POSITION HELD No	Hours	Wage per w'k
	200	5 miles
	No. trips to kitch. a day	Est. am't walked a day
	W'GHT OF TRAY	Heavy

* Fictitious names used.

APPENDIX V.

TABLE 1.
Age of Women Employed in Restaurants, by Occupation.

Age	Waitresses		Cooks		Helpers		Total at each age	
	No.	Per Cent	No.	Per Cent	No.	Per Cent	No.	Per Cent
14 and under 16 years	2	.3	...	...	...	...	2	.2
16 and under 21 years	77	15.0	38	21.0	130	48.0	245	25.0
21 and under 30 years	288	55.0	54	29.4	87	32.0	429	44.0
30 and under 40 years	127	24.0	46	25.1	35	13.0	208	21.2
40 and under 50 years	25	4.7	37	20.2	15	5.3	77	8.0
50 and under 60 years	4	1.0	8	4.3	3	1.0	15	1.4
60 years and over	...	...	...	...	2	.7	2	.2
Total	523	100.00	183	100.00	272	100.00	978 ^[16]	100.00

TABLE 2.
Age of Women Employed in Restaurants, by Nationality.

Nationality	14 and under 16 y'rs	16 and under 21 y'rs	21 and under 30 y'rs	30 and under 40 y'rs	40 and under 50 y'rs	50 and under 60 y'rs	60 y'rs and over	Total in each Nationality
American	...	48	156	81	26	3	...	314
Austro-Hungarian	1	155	137	55	18	4	...	370
Danish	...	...	4	...	1	...	...	5
Dutch	...	...	...	...	2	...	...	2
Eng. and Canadian	...	...	16	12	1	2	...	31
French	...	...	1	1	2	1	...	5
German	1	6	36	20	12	1	...	76
Greek	...	1	...	...	...	...	...	1
Irish	...	3	27	22	11	3	2	68
Italian	...	...	2	3	...	...	...	5
Polish	...	8	9	3	...	...	...	20
Russian	...	19	14	1	2	1	...	37
Scandinavian	...	1	5	4	1	...	...	11
Scotch	...	...	1	1	...	...	...	2
Swiss	...	1	1	...	...	...	...	2

West Indian	...	...	2	3	...	...	...	5
Total	2	242	411	206	76	15	2	954 ^[17]

TABLE 3.
Age of Women Employed in Restaurants, by Conjugal Condition.

Age	Single	Married	Widowed	Separated or Divorced	Total at each age
14 and under 16 years	2	...	...	...	2
16 and under 21 years	226	12	2	1	241
21 and under 30 years	235	153	19	12	419
30 and under 40 years	42	97	53	14	206
40 and under 50 years	8	40	26	3	77
50 and under 60 years	...	4	9	2	15
60 years and over	1	...	1	...	2
Total	514	306	110	32	962 ^[18]

TABLE 4.
Age of Women Employed in Restaurants, by Living Condition.

Age	Living with					Total at each age
	Family	Relatives	Friends	Furnis'd Room	Proprietor	
14 and under 16 years	1	...	...	1	...	2
16 and under 21 years	82	78	59	18	6	243
21 and under 30 years	198	74	62	64	16	414
30 and under 40 years	92	37	24	36	10	199
40 and under 50 years	45	5	4	17	4	75
50 and under 60 years	11	2	...	1	...	14
60 years and over	...	...	...	2	...	2
Total	429	196	149	139	36	949 ^[19]

TABLE 5.
Age of Women Employed in Restaurants, by Weekly Hours of Labor.

Weekly Hours of Labor	14 and under 16 y'rs	16 and under 21 y'rs	21 and under 30 y'rs	30 and under 40 y'rs	40 and under 50 y'rs	50 and under 60 y'rs	60 y'rs and over	Total in each hour group
54 hours and under	2	77	193	109	27	6	1	415

55 and under 65 hours	...	67	85	22	12	3	...	189
65 and under 75 hours	...	47	76	32	15	1	...	171
75 and under 85 hours	...	41	58	34	14	4	1	152
85 and under 95 hours	...	5	14	10	5	...	...	34
95 and under 105 hours	...	5	3	...	2	1	...	11
105 hours and over	...	3	...	1	2	...	...	6
Total	2	245	429	208	77	15	2	978 ^[20]

TABLE 6.
Weekly Hours of Labor of Women Employed in Restaurants by Occupation.

Weekly Hours of Labor	Waitresses		Cooks		Helpers		Total in each hour group	
	No.	Per Cent	No.	Per Cent	No.	Per Cent	No.	Per Cent
Under 15 hours	6	1.0	...	...	1	.3	7	.7
15 and under 25 h'rs	75	14.0	1	.5	7	2.4	83	8.1
25 and under 35 h'rs	89	16.2	1	.5	22	7.5	112	11.0
35 and under 45 h'rs	45	8.2	7	4.0	13	4.5	65	6.3
45 and under 55 h'rs	100	18.2	17	9.0	42	15.0	159	16.0
55 and under 65 h'rs	78	14.2	34	18.0	85	30.1	197	19.3
65 and under 75 h'rs	68	12.4	51	27.0	64	23.0	183	18.0
75 and under 85 h'rs	73	13.3	49	26.0	36	13.0	158	15.5
85 and under 95 h'rs	11	2.0	15	8.0	9	3.1	35	3.4
95 and under 105 h'rs	2	.3	7	4.0	3	1.1	12	1.1
105 hours and over	1	.2	5	3.0	...	...	6	.6
Total	548	100.0	187	100.0	282	100.0	1017	100.0

TABLE 7.
Weekly Hours of Labor of Women Employed in Restaurants by Nationality.

Nationality	54 h'rs and under	55 and under 65 h'rs	65 and under 75 h'rs	75 and under 85 h'rs	85 and under 95 h'rs	95 and under 105 h's	105 h's and over	Total in each Nationality
American	190	45	38	41	4	2	...	320
Austro-Hungarian	83	88	97	81	18	6	6	379
Danish	5	...	...	...	...	...	...	5
Dutch	1	...	1	...	...	...	...	2
Eng. and Canadian	19	7	1	3	2	1	...	33

French	2	3	...	...	...	...	...	5
German	36	14	15	9	2	...	...	76
Greek	1	...	...	...	...	...	...	1
Irish	44	5	7	12	1	1	...	70
Italian	3	1	1	1	...	...	...	6
Polish	5	8	2	2	3	...	...	20
Russian	15	10	7	2	3	...	...	37
Scandinavian	6	2	...	1	...	2	...	11
Scotch	1	...	1	...	...	...	...	2
Swiss	1	...	...	1	...	...	...	2
West Indian	2	1	1	...	1	...	...	5
Total	414	184	171	153	34	12	6	974 ^[21]

TABLE 8.
Weekly Wages of Women Employed in Restaurants by Occupation.

Weekly Wage	Waitresses		Cooks		Helpers		Total in each wage group	
	No.	Per Cent	No.	Per Cent	No.	Per Cent	No.	Per Cent
Under \$1	1	.1	...	...	...	...	1	.1
\$1 and under \$2	1	.1	...	...	...	...	1	.1
2 and under 3	10	1.8	...	...	...	...	10	1.0
3 and under 4	74	14.0	1	.5	21	7.6	96	10.0
4 and under 5	107	20.2	4	2.1	19	7.0	130	13.2
5 and under 6	119	23.0	11	6.0	51	18.5	181	18.3
6 and under 7	107	20.2	15	8.1	119	43.4	241	25.0
7 and under 8	65	12.2	35	19.0	52	19.0	152	15.3
8 and under 9	26	5.0	36	20.0	7	2.5	69	6.0
9 and under 10	8	1.5	22	12.0	...	...	30	3.0
10 and over	10	1.9	60	32.3	5	2.0	75	8.0
Total	528	100.0	184	100.0	274	100.0	986 ^[22]	100.0

TABLE 9.
Weekly Income of Women Employed in Restaurants by Occupation.

Weekly Income	Waitresses	Cooks	Helpers	Total
Under \$1	2	...	...	2
\$1 and under \$2	2	...	...	2
2 and under 3	2	...	...	2
3 and under 4	16	1	21	38

4 and under 5	24	4	19	47
5 and under 6	47	11	51	109
6 and under 7	51	15	119	185
7 and under 8	61	35	52	148
8 and under 9	59	36	7	102
9 and under 10	60	22	...	82
10 and under 15	129	51	5	185
15 and under 25	73	9	...	82
25 and over	7	...	...	7
Total	533	184	274	991 ^[23]

TABLE 10.

Wages of Women employed in Restaurants Showing Length of Time Idle during Preceding Year by Reason of Slack Season, Change of Work, Vacation with or Without Pay, Illness or Other Causes.

Weekly Wage	No time idle	Under 2 weeks	2 weeks and under 1 month	1 month and under 2 months	2 months and under 3 months	3 months and under 4 months	4 months and under 5 months	5 months and under 6 months	6 months and over	Total in each wage group
Under \$2	1	...	...	...	...	...	...	...	...	1
\$2 and under \$3	1	1	1	2	2	...	...	...	...	7
3 and under 4	25	10	10	8	4	7	1	2	8	75
4 and under 5	34	10	15	4	7	5	2	1	6	84
5 and under 6	45	13	14	14	7	6	1	1	5	106
6 and under 7	76	25	29	11	13	9	...	6	5	174
7 and under 8	52	19	13	8	10	4	1	...	7	114
8 and under 9	26	7	6	4	3	1	...	1	1	49
9 and under 10	14	5	1	1	1	...	1	1	...	24
10 and over	36	6	8	5	...	3	1	...	6	65
Total	310	96	97	57	47	35	7	12	38	699 ^[24]

TABLE 11.

Weekly Wage of Women Employed in Restaurants by Nationality.

Nationality	Under \$1	\$1 and under \$2	\$2 and under \$3	\$3 and under \$4	\$4 and under \$5	\$5 and under \$6	\$6 and under \$7	\$7 and under \$8	\$8 and under \$9	\$9 and under \$10	\$10 and over	Total in each Nationality
American	1	1	6	45	49	78	54	35	16	7	15	307
Austro-Hungarian	...	...	...	22	24	40	115	70	34	20	47	372

Danish	...	...	...	2	1	1	...	1	...	...	...	5
Dutch	...	...	...	...	...	1	...	1	...	...	...	2
English and Canadian	...	...	...	4	10	7	6	1	3	...	1	32
French	...	...	...	...	1	1	1	2	...	...	...	5
German	...	...	...	11	14	10	13	15	2	1	8	74
Greek	...	...	...	...	...	...	...	1	...	...	...	1
Irish	...	...	2	6	19	13	18	8	3	...	...	69
Italian	...	...	...	...	1	1	3	1	...	...	...	6
Polish	...	...	...	1	...	3	6	9	...	1	...	20
Russian	...	...	...	1	1	9	15	2	5	1	3	37
Scandinavian	...	...	...	1	3	2	1	2	2	...	...	11
Scotch	...	...	...	...	...	1	...	1	...	...	...	2
Swiss	...	...	...	...	...	1	...	1	...	...	...	2
West Indian	...	...	...	...	1	1	2	...	...	...	...	4
Total	1	1	8	93	124	169	234	150	65	30	74	949 ^[25]

APPENDIX VI.

STATES HAVING LAWS REGULATING WORK OF WOMEN EMPLOYED IN RESTAURANTS.

Verified by U. S. Bureau of Labor Statistics

HOURS

Hours in one day	Hours in one week	State
8	48	California
8	48	District of Columbia
8	56	Arizona
8		Colorado
8		Washington
	54	Maine
9	54	Missouri
9	54	Nebraska
9	54	Texas
9	54	Utah
9		Idaho
9		Montana
9		Oklahoma ^[26]
10	54	Michigan
10	54	Ohio
10	54	Pennsylvania
10	55	Wisconsin ^[27]
10	56	Wyoming
10	58	Minnesota
10	60	Kentucky
10	60	Louisiana

10	60	Mississippi
10	60	New Jersey
10	60	Oregon
10		Illinois
10¼	55	New Hampshire ^[27]
10½	57	Tennessee

To be determined by Industrial Welfare Commission.

Arkansas

Kansas

ONE DAY OF REST IN SEVEN REQUIRED.

California^[28]

District of Columbia

New Jersey

Pennsylvania

NIGHT WORK FORBIDDEN.

For all females

Nebraska

For females under 18

Arizona

California^[29]

District of Columbia

Louisiana

New Hampshire

California

Colorado

For females under 21

Ohio

Pennsylvania

Not more than 48 hours in one week

For all females

New Hampshire

Wisconsin

MINIMUM WAGE REQUIRED

Utah

To be determined by Industrial Welfare Commission

Arkansas

California

Colorado

Kansas

Massachusetts

Minnesota^[30]

Nebraska

Oregon

Washington

Wisconsin

MEAL TIME REQUIRED

Arizona

Louisiana

Maine
Minnesota
New Hampshire
New Jersey
Ohio
Pennsylvania
Wisconsin
Wyoming

SEATS REQUIRED

Arizona
Arkansas
California
District of Columbia
Idaho
Indiana
Kansas
Kentucky
Louisiana
Maine
Maryland
Michigan
Minnesota
Missouri
Montana
Nebraska

New York
North Carolina
Ohio
Oklahoma
Oregon
Pennsylvania
South Dakota
Texas
Utah
Vermont
Washington

TIPS FORBIDDEN

Arkansas
Iowa
Mississippi
South Carolina



FOOTNOTES

[1] [See Appendix I.](#)

[2] Women and Child Wage-earners in the United States, Vol. V., Chap. X.

[3] Dishwashers, silver cleaners, tray girls, cashiers, laundry workers and pantry hands are included in this term.

[4] 13th U. S. Census, 1910. Vol. VIII, Manufactures, p. 314.

[5] Women and Child Wage-earners in the United States, Vol. V, p. 199.

[6] The Girl Employed in Hotels and Restaurants. Juvenile Protective Association of Chicago, 1912.

[7] Report of the State Factory Investigating Commission for 1915, Vol. IV, p. 1593.

[8] *Ibid.*, p. 1609.

[9] Women and Child Wage-earners, Vol. V, p. 362.

[10] Women and Child Wage-earners in the United States, Vol. V, p. 199.

[11] The Girl Employed in Hotels and Restaurants. Juvenile Protective Association of Chicago, 1912.

[12] 30% of the workers interviewed had just begun work or did not report on this point, so they have not been included in these figures.

[13] [See Appendix VI.](#)

[14] Annual Report of the Commissioner of Labor, 1914.

[15] Fictitious names used.

[16] Exclusive of 39 women who did not report on this point.

[17] Exclusive of 63 women who did not report on this point.

[18] Exclusive of 55 women who did not report on this point.

[19] Exclusive of 68 women who did not report on this point.

[20] Exclusive of 39 women who did not report on this point.

[21] Exclusive of 43 women who did not report on this point.

[22] Exclusive of 31 women who did not report on this point.

[23] Exclusive of 26 women who did not report on this point.

[24] Exclusive of 318 women who did not report on this point.

[25] Exclusive of 68 women who did not report on this point.

[26] In cases of emergency 10 hours a day are allowed if not less than double for overtime is paid.

[27] Has an 8 and 48 hour law for night work.

[28] Except in cases of emergency.

[29] Except in cases of emergency.

[30] Not now in force—pending Supreme Court decision.

*** END OF THE PROJECT GUTENBERG EBOOK BEHIND THE
SCENES IN A RESTAURANT: A STUDY OF 1017 WOMEN
RESTAURANT EMPLOYEES ***

Updated editions will replace the previous one—the old editions will be renamed.

Creating the works from print editions not protected by U.S. copyright law means that no one owns a United States copyright in these works, so the Foundation (and you!) can copy and distribute it in the United States without permission and without paying copyright royalties. Special rules, set forth in the General Terms of Use part of this license, apply to copying and distributing Project Gutenberg™ electronic works to protect the PROJECT GUTENBERG™ concept and trademark. Project Gutenberg is a registered trademark, and may not be used if you charge for an eBook, except by following the terms of the trademark license, including paying royalties for use of the Project Gutenberg trademark. If you do not charge anything for copies of this eBook, complying with the trademark license is very easy. You may use this eBook for nearly any purpose such as creation of derivative works, reports, performances and research. Project Gutenberg eBooks may be modified and printed and given away—you may do practically ANYTHING in the United States with eBooks not protected by U.S. copyright law. Redistribution is subject to the trademark license, especially commercial redistribution.

START: FULL LICENSE

THE FULL PROJECT GUTENBERG™ LICENSE

PLEASE READ THIS BEFORE YOU DISTRIBUTE OR USE THIS WORK

To protect the Project Gutenberg™ mission of promoting the free distribution of electronic works, by using or distributing this work (or any other work associated in any way with the phrase “Project Gutenberg”), you agree to comply with all the terms of the Full Project Gutenberg License available with this file or online at www.gutenberg.org/license.

Section 1. General Terms of Use and Redistributing Project Gutenberg electronic works

1.A. By reading or using any part of this Project Gutenberg electronic work, you indicate that you have read, understand, agree to and accept all the terms of this license and intellectual property (trademark/copyright) agreement. If you do not agree to abide by all the terms of this agreement, you must cease using and return or destroy all copies of Project Gutenberg electronic works in your possession. If you paid a fee for obtaining a copy of or access to a Project Gutenberg electronic work and you do not agree to be bound by the terms of this agreement, you may obtain a refund from the person or entity to whom you paid the fee as set forth in paragraph 1.E.8.

1.B. “Project Gutenberg” is a registered trademark. It may only be used on or associated in any way with an electronic work by people who agree to be bound by the terms of this agreement. There are a few things that you can do with most Project Gutenberg electronic works even without complying with the full terms of this agreement. See paragraph 1.C below. There are a lot of things you can do with Project Gutenberg electronic works if you follow the terms of this agreement and help preserve free future access to Project Gutenberg electronic works. See paragraph 1.E below.

1.C. The Project Gutenberg Literary Archive Foundation (“the Foundation” or PGLAF), owns a compilation copyright in the collection of Project Gutenberg electronic works. Nearly all the individual works in the collection are in the public domain in the United States. If an individual work is unprotected by copyright law in the United States and you are

located in the United States, we do not claim a right to prevent you from copying, distributing, performing, displaying or creating derivative works based on the work as long as all references to Project Gutenberg are removed. Of course, we hope that you will support the Project Gutenberg mission of promoting free access to electronic works by freely sharing Project Gutenberg works in compliance with the terms of this agreement for keeping the Project Gutenberg name associated with the work. You can easily comply with the terms of this agreement by keeping this work in the same format with its attached full Project Gutenberg License when you share it without charge with others.

1.D. The copyright laws of the place where you are located also govern what you can do with this work. Copyright laws in most countries are in a constant state of change. If you are outside the United States, check the laws of your country in addition to the terms of this agreement before downloading, copying, displaying, performing, distributing or creating derivative works based on this work or any other Project Gutenberg work. The Foundation makes no representations concerning the copyright status of any work in any country other than the United States.

1.E. Unless you have removed all references to Project Gutenberg:

1.E.1. The following sentence, with active links to, or other immediate access to, the full Project Gutenberg License must appear prominently whenever any copy of a Project Gutenberg work (any work on which the phrase “Project Gutenberg” appears, or with which the phrase “Project Gutenberg” is associated) is accessed, displayed, performed, viewed, copied or distributed:

This eBook is for the use of anyone anywhere in the United States and most other parts of the world at no cost and with almost no restrictions whatsoever. You may copy it, give it away or re-use it under the terms of the Project Gutenberg™ License included with this eBook or online at www.gutenberg.org. If you are not located in the United States, you will have to check the laws of the country where you are located before using this eBook.

1.E.2. If an individual Project Gutenberg electronic work is derived from texts not protected by U.S. copyright law (does not contain a notice indicating that it is posted with permission of the copyright holder), the work can be copied and distributed to anyone in the United States without paying any fees or charges. If you are redistributing or providing access to a work with the phrase “Project Gutenberg” associated with or appearing on the work, you must comply either with the requirements of paragraphs 1.E.1 through 1.E.7 or obtain permission for the use of the work and the Project Gutenberg trademark as set forth in paragraphs 1.E.8 or 1.E.9.

1.E.3. If an individual Project Gutenberg electronic work is posted with the permission of the copyright holder, your use and distribution must comply with both paragraphs 1.E.1 through 1.E.7 and any additional terms imposed by the copyright holder. Additional terms will be linked to the Project Gutenberg License for all works posted with the permission of the copyright holder found at the beginning of this work.

1.E.4. Do not unlink or detach or remove the full Project Gutenberg License terms from this work, or any files containing a part of this work or any other work associated with Project Gutenberg.

1.E.5. Do not copy, display, perform, distribute or redistribute this electronic work, or any part of this electronic work, without prominently displaying the sentence set forth in paragraph 1.E.1 with active links or immediate access to the full terms of the Project Gutenberg License.

1.E.6. You may convert to and distribute this work in any binary, compressed, marked up, nonproprietary or proprietary form, including any word processing or hypertext form. However, if you provide access to or distribute copies of a Project Gutenberg work in a format other than “Plain Vanilla ASCII” or other format used in the official version posted on the official Project Gutenberg website (www.gutenberg.org), you must, at no additional cost, fee or expense to the user, provide a copy, a means of exporting a copy, or a means of obtaining a copy upon request, of the work in its original “Plain Vanilla ASCII” or other form. Any alternate format must include the full Project Gutenberg License as specified in paragraph 1.E.1.

1.E.7. Do not charge a fee for access to, viewing, displaying, performing, copying or distributing any Project Gutenberg works unless you comply with paragraph 1.E.8 or 1.E.9.

1.E.8. You may charge a reasonable fee for copies of or providing access to or distributing Project Gutenberg electronic works provided that:

- You pay a royalty fee of 20% of the gross profits you derive from the use of Project Gutenberg works calculated using the method you already use to calculate your applicable taxes. The fee is owed to the owner of the Project Gutenberg trademark, but he has agreed to donate royalties under this paragraph to the Project Gutenberg Literary Archive Foundation. Royalty payments must be paid within 60 days following each date on which you prepare (or are legally required to prepare) your periodic tax returns. Royalty payments should be clearly marked as such and sent to the Project Gutenberg Literary Archive Foundation at the address specified in Section 4, "Information about donations to the Project Gutenberg Literary Archive Foundation."
- You provide a full refund of any money paid by a user who notifies you in writing (or by e-mail) within 30 days of receipt that s/he does not agree to the terms of the full Project Gutenberg™ License. You must require such a user to return or destroy all copies of the works possessed in a physical medium and discontinue all use of and all access to other copies of Project Gutenberg™ works.
- You provide, in accordance with paragraph 1.F.3, a full refund of any money paid for a work or a replacement copy, if a defect in the electronic work is discovered and reported to you within 90 days of receipt of the work.
- You comply with all other terms of this agreement for free distribution of Project Gutenberg™ works.

1.E.9. If you wish to charge a fee or distribute a Project Gutenberg™ electronic work or group of works on different terms than are set forth in

this agreement, you must obtain permission in writing from the Project Gutenberg Literary Archive Foundation, the manager of the Project Gutenberg™ trademark. Contact the Foundation as set forth in Section 3 below.

1.F.

1.F.1. Project Gutenberg volunteers and employees expend considerable effort to identify, do copyright research on, transcribe and proofread works not protected by U.S. copyright law in creating the Project Gutenberg™ collection. Despite these efforts, Project Gutenberg™ electronic works, and the medium on which they may be stored, may contain “Defects,” such as, but not limited to, incomplete, inaccurate or corrupt data, transcription errors, a copyright or other intellectual property infringement, a defective or damaged disk or other medium, a computer virus, or computer codes that damage or cannot be read by your equipment.

1.F.2. LIMITED WARRANTY, DISCLAIMER OF DAMAGES - Except for the “Right of Replacement or Refund” described in paragraph 1.F.3, the Project Gutenberg Literary Archive Foundation, the owner of the Project Gutenberg™ trademark, and any other party distributing a Project Gutenberg™ electronic work under this agreement, disclaim all liability to you for damages, costs and expenses, including legal fees. YOU AGREE THAT YOU HAVE NO REMEDIES FOR NEGLIGENCE, STRICT LIABILITY, BREACH OF WARRANTY OR BREACH OF CONTRACT EXCEPT THOSE PROVIDED IN PARAGRAPH 1.F.3. YOU AGREE THAT THE FOUNDATION, THE TRADEMARK OWNER, AND ANY DISTRIBUTOR UNDER THIS AGREEMENT WILL NOT BE LIABLE TO YOU FOR ACTUAL, DIRECT, INDIRECT, CONSEQUENTIAL, PUNITIVE OR INCIDENTAL DAMAGES EVEN IF YOU GIVE NOTICE OF THE POSSIBILITY OF SUCH DAMAGE.

1.F.3. LIMITED RIGHT OF REPLACEMENT OR REFUND - If you discover a defect in this electronic work within 90 days of receiving it, you can receive a refund of the money (if any) you paid for it by sending a written explanation to the person you received the work from. If you received the work on a physical medium, you must return the medium with your written explanation. The person or entity that provided you with the

defective work may elect to provide a replacement copy in lieu of a refund. If you received the work electronically, the person or entity providing it to you may choose to give you a second opportunity to receive the work electronically in lieu of a refund. If the second copy is also defective, you may demand a refund in writing without further opportunities to fix the problem.

1.F.4. Except for the limited right of replacement or refund set forth in paragraph 1.F.3, this work is provided to you 'AS-IS', WITH NO OTHER WARRANTIES OF ANY KIND, EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO WARRANTIES OF MERCHANTABILITY OR FITNESS FOR ANY PURPOSE.

1.F.5. Some states do not allow disclaimers of certain implied warranties or the exclusion or limitation of certain types of damages. If any disclaimer or limitation set forth in this agreement violates the law of the state applicable to this agreement, the agreement shall be interpreted to make the maximum disclaimer or limitation permitted by the applicable state law. The invalidity or unenforceability of any provision of this agreement shall not void the remaining provisions.

1.F.6. INDEMNITY - You agree to indemnify and hold the Foundation, the trademark owner, any agent or employee of the Foundation, anyone providing copies of Project Gutenberg™ electronic works in accordance with this agreement, and any volunteers associated with the production, promotion and distribution of Project Gutenberg™ electronic works, harmless from all liability, costs and expenses, including legal fees, that arise directly or indirectly from any of the following which you do or cause to occur: (a) distribution of this or any Project Gutenberg work, (b) alteration, modification, or additions or deletions to any Project Gutenberg work, and (c) any Defect you cause.

Section 2. Information about the Mission of Project Gutenberg

Project Gutenberg is synonymous with the free distribution of electronic works in formats readable by the widest variety of computers including

obsolete, old, middle-aged and new computers. It exists because of the efforts of hundreds of volunteers and donations from people in all walks of life.

Volunteers and financial support to provide volunteers with the assistance they need are critical to reaching Project Gutenberg's goals and ensuring that the Project Gutenberg collection will remain freely available for generations to come. In 2001, the Project Gutenberg Literary Archive Foundation was created to provide a secure and permanent future for Project Gutenberg and future generations. To learn more about the Project Gutenberg Literary Archive Foundation and how your efforts and donations can help, see Sections 3 and 4 and the Foundation information page at www.gutenberg.org.

Section 3. Information about the Project Gutenberg Literary Archive Foundation

The Project Gutenberg Literary Archive Foundation is a non-profit 501(c)(3) educational corporation organized under the laws of the state of Mississippi and granted tax exempt status by the Internal Revenue Service. The Foundation's EIN or federal tax identification number is 64-6221541. Contributions to the Project Gutenberg Literary Archive Foundation are tax deductible to the full extent permitted by U.S. federal laws and your state's laws.

The Foundation's business office is located at 41 Watchung Plaza #516, Montclair NJ 07042, USA, +1 (862) 621-9288. Email contact links and up to date contact information can be found at the Foundation's website and official page at www.gutenberg.org/contact

Section 4. Information about Donations to the Project Gutenberg Literary Archive Foundation

Project Gutenberg™ depends upon and cannot survive without widespread public support and donations to carry out its mission of increasing the number of public domain and licensed works that can be freely distributed in machine-readable form accessible by the widest array of equipment

including outdated equipment. Many small donations (\$1 to \$5,000) are particularly important to maintaining tax exempt status with the IRS.

The Foundation is committed to complying with the laws regulating charities and charitable donations in all 50 states of the United States. Compliance requirements are not uniform and it takes a considerable effort, much paperwork and many fees to meet and keep up with these requirements. We do not solicit donations in locations where we have not received written confirmation of compliance. To SEND DONATIONS or determine the status of compliance for any particular state visit www.gutenberg.org/donate.

While we cannot and do not solicit contributions from states where we have not met the solicitation requirements, we know of no prohibition against accepting unsolicited donations from donors in such states who approach us with offers to donate.

International donations are gratefully accepted, but we cannot make any statements concerning tax treatment of donations received from outside the United States. U.S. laws alone swamp our small staff.

Please check the Project Gutenberg web pages for current donation methods and addresses. Donations are accepted in a number of other ways including checks, online payments and credit card donations. To donate, please visit: www.gutenberg.org/donate.

Section 5. General Information About Project Gutenberg electronic works

Professor Michael S. Hart was the originator of the Project Gutenberg concept of a library of electronic works that could be freely shared with anyone. For forty years, he produced and distributed Project Gutenberg eBooks with only a loose network of volunteer support.

Project Gutenberg eBooks are often created from several printed editions, all of which are confirmed as not protected by copyright in the U.S. unless a

copyright notice is included. Thus, we do not necessarily keep eBooks in compliance with any particular paper edition.

Most people start at our website which has the main PG search facility:
www.gutenberg.org.

This website includes information about Project Gutenberg, including how to make donations to the Project Gutenberg Literary Archive Foundation, how to help produce our new eBooks, and how to subscribe to our email newsletter to hear about new eBooks.